SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO.	PAGE 1 OF
541-27-1-0355-0004	97

2. CONTRACT NO.	3. AWARD/EFFECTIVE DATE	4. ORDER NO.	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			36C25027Q0075	10-28-2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NO. (No Collect Calls)	8. OFFER DUE DATE/LOCAL TIME
	Josh Kovar – Joshua.Kovar@VA.gov		11-23-2026 13:30 EST

9. ISSUED BY — CODE 36C250

Department of Veterans Affairs
Network Contracting Office (NCO 10)
3140 Governor's Place Blvd. Suite 210
Kettering OH 45409-1337

10. THIS ACQUISITION IS

- [ ] UNRESTRICTED OR [X] SET ASIDE: 100 % FOR:
- [X] SMALL BUSINESS
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- [ ] HUBZONE SMALL BUSINESS
- [ ] EDWOSB
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- [ ] 8(A)

NAICS: 562119

SIZE STANDARD: $47 Million

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION
[ ] SEE SCHEDULE		[ ]	N/A [X] RFQ [ ] IFB [ ] RFP

15. DELIVER TO — CODE 36C541

Department of Veterans Affairs
Northeast Ohio VA Healthcare System
EMS Department
10701 East Boulevard
Cleveland OH 44106

16. ADMINISTERED BY — CODE 36C250

Department of Veterans Affairs
Network Contracting Office (NCO) 10
3140 Governors Place Blvd. Suite 210
Kettering OH 45409-1337

17a. CONTRACTOR/OFFEROR CODE _____ FACILITY CODE _____

TELEPHONE NO. _____ UEI: _____ EFT: _____

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE _____

Department of Veterans Affairs
Financial Services Center
Invoices To Be Submitted Electronically
https://www.ob10.com/us/en/veterans-affairs// Invoice Setup Info Phone

PHONE: 877 353 9791 FAX: 512 460 5429

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED
[ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES (See CONTINUATION Page)	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	This is a RFQ for Facility Scrap and Recycling services at the Northeast Ohio VA Healthcare System. QA Period Closes at 1:30 PM EST on 11/13/2026 Solicitation Deadline is 1:30 PM EST on 11/23/2026 All questions and solicitation responses shall be emailed to the Contracting officer - Phone calls are not entertained. Please see *QUOTE PREPARATION INSTRUCTIONS* for a list of items that must be returned in your response. Failure to provide all requested items will result in your response being excluded for award. (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA: See CONTINUATION Page

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

[X] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4 ARE ATTACHED. ADDENDA [X] ARE [ ] ARE NOT ATTACHED.

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[X] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)	31c. DATE SIGNED

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:
   a. CONTRACTOR:

   b. GOVERNMENT: Contracting Officer 36C250 Josh Kovar

   Department of Veterans Affairs
   Network Contracting Office (NCO 10)
   3140 Governor's Place Blvd. Suite 210
   Kettering OH 45409-1337

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[x] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or
[] 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:
   a. Quarterly []
   b. Semi-Annually []
   c. Other [x] Monthly in Arrears

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

https://www.tungsten-network.com/customer-campaigns/veteransaffairs/

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PERFORMANCE WORK STATEMENT

Updated: 10/28/2026

Contract Title: Facility Scrap and Recycling Services — VA Northeast Ohio Healthcare System – Louis Stokes VA Medical Center and Supported Community Based Outpatient Clinics (CBOCs)

1. INTRODUCTION

This Performance Work Statement (PWS) establishes the performance requirements for the removal, recycling, and proper disposal of scrap materials generated by the Louis Stokes VA Medical Center (LSVAMC) and all associated offsite facilities. The contractor shall achieve timely, compliant, and efficient scrap removal outcomes that support safe operations, environmental stewardship, and regulatory compliance. Contractor performance will be measured against the standards identified in the Performance Requirements Summary (QASP table) and monitored in accordance with the Government's Quality Assurance Surveillance Plan (QASP).

2. BACKGROUND

The Louis Stokes VA Medical Center (541) generates thousands of pounds of scrap materials and unserviceable equipment each week. These materials must be removed and processed through authorized scrap and recycling contractors. Scrap may include metals, wood, plastics, ceramics, and equipment rendered unserviceable that cannot be disposed of in standard dunnage bins.

Due to limited storage space and unpredictable removal timelines, the VA requires a reliable scrap removal service capable of responding quickly and servicing multiple VA locations. The VA seeks to establish a contract structured as five (5) ordering periods, to ensure continuity of these services. Services under this contract shall be performed on an indefinite-delivery, on-call/as-needed basis; no recurring fixed schedule of pickups is guaranteed, and actual service events will be governed solely by demand and issued in accordance with Section 3.2.

3. SCOPE

The contractor shall achieve the removal, recycling, and disposal of scrap materials from LSVAMC and all associated offsite locations, including all labor, equipment, transportation, and materials necessary to accomplish this outcome. The contractor shall furnish its own vehicle(s), with a minimum size of a 26-foot box truck or similar vehicle, to report on-premises at each site, load scrap materials directly, and transport them off-site for recycling or disposal. The contractor may use two (2) smaller vehicles to service a single pickup, provided their combined cargo capacity meets or exceeds that of a 26-foot box truck and all material is removed within the 48-hour response requirement (see Section 3.5(g) and QASP Row 1). Vehicles shall arrive on a staggered schedule and shall not arrive at or occupy dock space simultaneously. Prior to dispatching multiple vehicles for any pickup, the contractor shall coordinate with the COR/Station POC so the Government can confirm that multiple vehicles are warranted for that pickup. Individual pickups generally do not exceed approximately 5,000 lbs., and no maximum individual-item weight or dimension is established; see Section 3.4 for historical monthly weight data. No Government-leased or standing dumpster/roll-off container will be provided or maintained by the contractor under this contract. The Government estimates approximately 15 pickups per month across all listed sites, based on historical experience; the quantities identified in Section 3.3 are intentionally estimated above this historical level to account for anticipated growth and are the controlling figures for pricing and evaluation purposes. All disposal, tipping, processing, fuel, and other costs associated

with performing a pickup — including disposal of non-recyclable materials — shall be included in the contractor's applicable per-pickup CLIN price and are not separately reimbursable by the Government. This is provided for planning purposes only and does not constitute a guaranteed minimum or maximum.

The Government reserves the right to add or remove any additional locations, Community Based Outpatient Clinics (CBOCs), or other facilities to the contract as they become available. Furthermore, the Government reserves the right to add, increase, or decrease the quantity, frequency, or scope of collections to allow for fluctuations in client demand that are otherwise unknown at the time of solicitation. The total contract value may increase up to 20% of the base award.

Required outcomes include:

- Scrap collection completed within required response times
- Freight and transportation of materials to authorized recycling/disposal facilities
- Recycling processing performed by authorized/licensed recyclers
- Proper disposal of non-recyclable materials in accordance with applicable regulations
- Return of recycling proceeds to the Government

3.1 SITE LIST AND ADDRESS REFERENCE TABLE

Type	Name	Address
Main Facility	Louis Stokes VA Medical Center – Warehouse Dock	10701 East Blvd, Cleveland, OH 44106
Internal Department	Environmental Management Services (EMS)	Main Facility
Internal Department	Engineering Service	Main Facility
Cemetery	Ohio Western Reserve National Cemetery	10175 Rawiga Rd., Seville, OH 44273
Warehouse	On Station Storage Warehouses	Main Facility
Warehouse	Offsite Warehouse Facilities	4346 Cranwood Pkwy, Warrensville Hts, OH 44122
CBOC	Kent VA Clinic	3838 Cascades Blvd., Kent, OH 44240
CBOC	Canton CBOC	733 Market Avenue South, Canton, OH 44702
CBOC	Lake County CBOC	35000 Kaiser Court, Willoughby, OH 44094
CBOC	Ravenna Outpatient Clinic (N. Chestnut St.)	6751 North Chestnut Street, Ravenna, OH 44266 — planned for deactivation October/November 2026; contractor shall continue servicing until deactivation is confirmed by the COR/Logistics Department

CBOC	Warren Outpatient Clinic	1406 Todd N.W., Warren, OH 44485
CBOC	East Liverpool CBOC	15655 State Route 170, Calcutta, OH 43920
CBOC	Akron CBOC	55 West Waterloo Road, Akron, OH 44319
CBOC	Akron CBOC – Annex	95 West Waterloo Road, Akron, OH 44319 — separate pickup point, adjacent to main Akron CBOC; both locations require service
CBOC	Lorain CBOC	5255 N. Abbe Road, Sheffield Village, OH 44035
CBOC	Mansfield CBOC	1025 S Trimble Rd, Mansfield, OH 44906
CBOC	New Philadelphia CBOC	1260 Monroe Avenue, Suite 1A, New Philadelphia, OH 44663
CBOC	Sandusky CBOC	3416 Columbus Avenue S, Sandusky, OH 44870
CBOC	Wade Park Personal Health	Main Facility
CBOC	Youngstown CBOC	2031 Belmont Avenue, Youngstown, OH 44505
CBOC	Parma CBOC	8700 Brook Park Road, Parma, OH 44129
Communications/External Affairs	Ravenna (Loomis Ave.)	4100 Loomis Ave., Ravenna, OH 44266 — new facility scheduled to open October/November 2026; this and the Ravenna Outpatient Clinic (N. Chestnut St.) shall both be serviced during the transition period until the N. Chestnut St. site is confirmed deactivated
Communications/External Affairs	LXC (Learning Exchange Center)	Main Campus — located across from the Warehouse Dock, adjacent to the employee parking garage
Communications/External Affairs	EUL (Cleveland VA Midtown Hemodialysis 1st Flr. and CRRC 2nd Flr.)	7000 Euclid Ave., Cleveland, OH 44103
Communications/External Affairs	Park Center Plaza – Building 1	6100 Oak Tree Blvd., Independence, OH 44131 — separate pickup point; both Independence buildings require service
Communications/External Affairs	Park Center Plaza – Building 2	6150 Oak Tree Blvd., Independence, OH 44131 — separate pickup point; both Independence buildings require service
Housing/Logistics	On Station Housing – Logistics Service (Domiciliary/DOM)	Main Campus — attached to the employee parking garage

Manufacturing/Lab	Advanced Manufacturing (Cedar)	11000 Cedar Ave., Cleveland, OH 44106
Surgical Center	Outpatient Surgery Center – Surgical (W)	8901 Superior Ave., Cleveland, OH 44106
Vet Center	Vet Center East	24197 Broadway Ave., Oakwood Village, OH 44146
Vet Center	Vet Center West	4220 Cleveland Ave NW, Canton, OH 44702
Other (Prosthetics)	Health Aide of Ohio	6940 Engle Rd., Suite A, Cleveland, OH 44130
Other	Fisher House	10521 Lee Ave., Cleveland, OH 44106

3.2 ORDERING AUTHORITY — WHO MAY REQUEST A PICKUP

All pickups under this contract are on-call/as-needed. Pickups shall be initiated ONLY by, or with the express prior permission of, one of the following:

- The VA Northeast Ohio Healthcare System (VANEOHS) NX – Equipment Team
- The Logistics Department
- The Contracting Officer (CO)

No other individual, service, department, or site (including individual CBOC or clinic staff) is authorized to request, schedule, or direct a pickup under this contract. If the contractor receives a pickup request from anyone other than the NX Equipment Team, Logistics Department, or the CO, the contractor shall decline the request and shall verify authorization with one of the above parties before dispatching a vehicle. The contractor shall not be entitled to payment for any pickup performed at the direction of an unauthorized requester, and performing such an unauthorized pickup may be treated as a performance and invoicing discrepancy under the QASP.

The CO will issue one (1) funded annual task order per ordering period and individual pickups are authorized under the funded order by the NX/Logistics/CO per PWS 3.2.

3.3 ESTIMATED PICKUP VOLUME

The following pickup volumes are Government estimates for planning purposes only, provided on an on-call/as-needed basis, and do not constitute a guaranteed minimum or maximum. Estimated monthly pickup volume shall escalate by one (1) pickup per month, per site grouping, with each new ordering period, as follows:

Site Grouping	Ordering Period 1	Ordering Period 2	Ordering Period 3	Ordering Period 4	Ordering Period 5
Main Facility (Section 3.1)	13/month	14/month	15/month	16/month	17/month

Offsite CBOCs and Other Facilities (Section 3.1)	7/month	8/month	9/month	10/month	11/month

Estimated Annual Pickup Totals (for planning/pricing purposes; derived from the monthly figures above):

Site Grouping	Ordering Period 1	Ordering Period 2	Ordering Period 3	Ordering Period 4	Ordering Period 5
Main Facility	156/year	168/year	180/year	192/year	204/year
Offsite CBOCs and Other Facilities	84/year	96/year	108/year	120/year	132/year
Combined Total	**240/year**	**264/year**	**288/year**	**312/year**	**336/year**

As a courtesy, the contractor should make every effort to remind the government POC once 80% usage of a particular clin's annual estimated quantity has been reached. The government will independently track usage against each clin as well. There shall be no services performed beyond a clin's annual estimated/not-to-exceed quantity without a contract modification.

3.4 HISTORICAL WEIGHT DATA (ESTIMATE ONLY)

The following represents the historical average monthly weight of scrap collected across all sites during the preceding 12-month period, provided for planning and pricing purposes only:

Month	Weight (lbs.)
October 2025	32,330
November 2025	41,504
December 2025	25,289
January 2026	8,644
February 2026	35,076
March 2026	18,538
April 2026	22,833
May 2026	12,572

June 2026	17,638
July 2026	24,304
August 2026	8,809
September 2026	21,789
FY 2026 Annual Total	**269,326**
Historical Monthly Average FY 2026	**~22,444 lbs./month**

Disclaimer: the historical weight data and monthly average provided above are estimates only, based on prior-year data, and are furnished for informational and planning purposes only. These figures do not constitute actual, guaranteed, minimum, or maximum weights to be collected under this contract. Actual scrap weights collected in any given month or ordering period may be higher or lower than the historical average shown, and the government makes no representation or warranty as to future volume. The contractor shall not rely on these figures as a basis for any claim, equitable adjustment, or dispute regarding actual volumes encountered during performance.

3.5 PICKUP CONDITIONS AND ACCESS

(a) Staging and interior retrieval. Material is generally staged in warehouse or dock areas. On occasion, pickups may require retrieval from non-staged locations, including offices, basements, mechanical rooms, other floors, or multiple interior locations within a facility. The contractor shall furnish the labor and equipment necessary for such retrieval.

(b) Site access. The Government is not aware of any height, weight, parking, or access restrictions at the sites listed in Section 3.1. The contractor is responsible for assessing site access conditions.

(c) No additional compensation. Interior retrieval, additional labor, or additional equipment needed to complete a pickup is included in the applicable per-pickup CLIN price. No separate special request, scope modification, or additional compensation will be authorized for such effort.

(d) Pickup weight. Individual pickups generally do not exceed approximately 5,000 lbs. No maximum individual-item weight or dimension is established.

(e) Pre-arrival information. Photographs of material will not be provided. Upon order placement, the contractor may ask the requester to identify what is being picked up, whether any heavy or oversized items are included, and estimated weights. The Government will respond on a reasonable-efforts basis.

(f) Material composition. Material composition varies by pickup, and the Government has no historical data on material mix.

(g) 48-hour response period. The 48-hour response period begins at the time of notification by an authorized requester and does not include weekends or Federal Holidays. If a pickup must occur on a weekend, the Government will coordinate with the contractor to allow ample time to arrange the pickup. Weekend pickups are uncommon.

4. DEFINITIONS

4.1 HOSPITAL SCRAP

Non-hazardous materials and unserviceable equipment generated through daily operations, maintenance, construction, and modernization activities.

Acceptable Scrap Materials

- Metals: steel, aluminum, copper, stainless steel, fixtures, carts, bed frames, piping
- Plastics: non-medical plastic components, broken bins, containers
- Wood: pallets, crating, damaged furniture
- Ceramics and Glass: broken tiles, fixtures, non-hazardous glass
- Unserviceable Equipment: items rendered unusable and designated for scrap
- Mixed Scrap: items containing ≤10% non-metal materials (rubber, insulation [non-asbestos], cork, concrete, etc.)

Prohibited Materials

- Hazardous materials
- Liquids or gases
- Enameled scrap
- Biomedical waste
- IT equipment requiring data sanitization
- Any material requiring special disposal under environmental regulations

All items collected must be free of any liquids, refrigerants (e.g., Freon), and other prohibited materials identified above. Where an authorized pickup contains a prohibited item mixed with otherwise acceptable scrap, the contractor may decline to collect that specific item and leave it at the Government facility while completing collection of the remainder of the authorized pickup. Declining a prohibited item under this provision shall not be considered incomplete or deficient performance under the QASP, Row 1.

4.2 RATIONALE FOR PERFORMANCE REQUIREMENTS

Timely, compliant scrap removal is required to:

1. **Maintain safe work environments** — accumulated scrap creates fire hazards and blocks pathways.
2. **Ensure regulatory compliance** — with OSHA, Joint Commission standards, and federal/state environmental regulations.
3. **Support operational efficiency** — Engineering, Logistics, and EMS require clear staging areas.
4. **Manage limited storage space** — particularly at CBOCs with minimal capacity.
5. **Promote environmental stewardship** — recycling reduces landfill waste and supports VA sustainability goals.
6. **Return proceeds to the VA** — recyclable scrap generates funds returned to the VA Agent Cashier.

4.3 DEFINITION OF "PICKUP": For purposes of billing under the applicable CLIN/SLIN, one billable "pickup" is defined as one load, not one job or service event. Where servicing a single authorized request at one location requires multiple truckloads/trips (e.g., due to vehicle capacity), each truckload/trip constitutes a separate billable pickup. Notwithstanding the foregoing, the use of multiple vehicles to service a single

authorized pickup request at a single location constitutes one (1) pickup for invoicing and CLIN purposes, regardless of the number of vehicles dispatched. The contractor shall not invoice multiple vehicles responding to the same pickup event as separate pickups under the applicable per-pickup CLIN.

5. APPLICABLE DIRECTIVES AND REFERENCES

The contractor shall perform all work in accordance with the following directives and regulations, as applicable and as may be updated or superseded during the period of performance:

- **VHA Directive 7707**, VHA Green Environmental Management System (GEMS) and Governing Environmental Policy Statement — va.gov/vhapublications, pub_ID=9234
- **VHA Directive 1850.06**, Waste Management Program — va.gov/vhapublications, pub_ID=9875
- **VA Directive 0057**, VA Environmental Management Program — va.gov/vapubs, Pub_ID=1404
- **VA Financial Policy, Volume IV, Chapter 4 – Recycling Revenue** — department.va.gov/financial-policy-documents

6. HOURS OF PERFORMANCE / FEDERAL HOLIDAYS

Scrap pickup services shall occur Monday–Friday during normal business hours, 8:00 AM–4:30 PM, excluding Federal Holidays. Pickups on weekends or outside these days and hours are uncommon and shall occur only by prior coordination with the COR/Station POC (see Section 3.5(g)). Federal Holidays shall be defined in accordance with the schedule published annually by the U.S. Office of Personnel Management (OPM) for the applicable calendar year(s) of performance. Federal Holidays currently observed are:

- New Year's Day
- Martin Luther King Jr.'s Birthday
- Washington's Birthday
- Memorial Day
- Juneteenth National Independence Day
- Independence Day
- Labor Day
- Columbus Day
- Veterans Day
- Thanksgiving Day
- Christmas Day

> Note: Exact dates shift each calendar year and shall be confirmed against the current OPM Federal Holiday schedule at time of performance, rather than fixed dates listed in this PWS.

7. REPORTING REQUIREMENTS AND AGENT CASHIER PROCEEDS

This section is the single, controlling reference for all reporting and proceeds-handling requirements under this contract. The QASP (Performance Requirements Summary) and Section 14 (Deliverables Summary) cross-reference this section rather than restating its requirements, to avoid inconsistency.

7.1 REPORT RECIPIENTS

All reports required under this section shall be submitted simultaneously to all three of the following:

- The Contracting Officer (CO)
- The Contracting Officer's Representative (COR)
- The GEMS Manager

7.2 REPORT FREQUENCY AND DUE DATES

Report	Frequency	Due Date
Monthly Summary Performance Report	Monthly	Within 5 calendar days of the end of the previous month
Annual Reconciliation and Certification Report	Annually (once per ordering period)	Within 30 calendar days of the expiration of each Ordering Period

7.3 REQUIRED CONTENT — MONTHLY SUMMARY PERFORMANCE REPORT

Each monthly report shall include, at minimum:

1. Date and time of each pickup
2. Location/site of each pickup
3. Driver Name/Vehicle ID
4. Gross Weight of materials collected at time of pickup
5. Materials collected, itemized by Category and Subtype per the Material Category Reporting Breakdown in Section 7.5
6. Current market value of each material subtype reported at the time of pickup. Current market value shall be established using the actual recycler/processor settlement rate on the date of drop-off/transaction. Final disposal/recycling site(s) for each material stream
7. Total recycling proceeds generated for the reporting month, itemized by material Category and Subtype

7.4 REQUIRED CONTENT — ANNUAL RECONCILIATION AND CERTIFICATION REPORT

The annual report shall consolidate and reconcile all monthly reports submitted during the ordering period, and shall confirm, itemized by material Category and Subtype (per Section 7.5):

1. Total tonnage/weight of scrap collected against the sum of all monthly reports for the period
2. Total recycling proceeds reported by the contractor against amounts actually received and recorded by the LSVAMC Agent Cashier (see Section 7.6)
3. Total number of pickups performed against the number invoiced for the period

> The COR shall independently validate the contractor's annual reconciliation against Agent Cashier deposit records and the monthly report history before accepting the report. The contractor's submission of the annual report is not, by itself, sufficient for acceptance — COR validation is required. This report is due regardless of whether the contract continues into a subsequent Ordering Period; the Annual Reconciliation and Certification Report for the final Ordering Period is required even if the contract is not extended or renewed.

7.5 MATERIAL CATEGORY REPORTING BREAKDOWN

All reports (monthly and annual) shall itemize collected materials according to the following categories and subtypes, including weight/tonnage and, where applicable, market value and proceeds attributable to each.

Materials shall not be combined into a single figure across categories or subtypes, except for genuinely commingled "Mixed Scrap" as defined in Section 4.1.

Category	Subtypes to be Reported	Proceeds Expected?
Metal	Steel, Iron, Copper, Brass, Aluminum, Stainless Steel, Nickel, and any other metal type collected (each itemized individually)	Yes
Other Recyclables	Plastics, Cardboard, and any other non-metal recyclable material collected	Yes, where applicable
Non-Recyclables	Wood, Foam, and any other non-recyclable material collected and sent to disposal	No — tracked by weight/volume only, for waste-stream and GEMS diversion-rate reporting purposes consistent with VHA Directive 1850.06 and VHA Directive 7707 (Section 5)

7.6 AGENT CASHIER PROCEEDS — DELIVERY REQUIREMENTS (MANDATORY — NO EXCEPTIONS)

Recycling proceeds are a mandatory deliverable under this contract, not a discretionary or "as-available" item. The contractor shall deliver proceeds for every load of recyclable material collected under this contract, without exception, in accordance with VA Financial Policy, Volume IV, Chapter 4 (Section 5). Failure to submit proceeds — including silent non-submission, non-response, or claiming no recyclable value without required certification per Section 7.6(4) below — constitutes a material breach of this contract and shall be treated as a critical, not minor, performance failure under QASP Row 7 and the CDR process in QASP Section 4.

All recycling proceeds generated under this contract shall be delivered as follows:

1. **Form and address of payment:** Check, made payable and mailed to:

> Louis Stokes VA Healthcare Center
> Attn: Agent Cashier / FCP 2516-0162 – Medical Facilities
> 10701 East Blvd. Cleveland, OH 44106

2. **Timing:** Proceeds shall be received by the Agent Cashier within 14 calendar days of the date recyclable items are picked up and/or sold/processed by the contractor, whichever occurs first. This is a hard deadline, not a target.
3. **Matching requirement:** Each proceeds payment shall correspond to, and be traceable against, the material Category/Subtype and weight figures reported in that month's Summary Performance Report (Section 7.3). A monthly report showing recyclable metal or other-recyclable tonnage collected, with no corresponding proceeds received by the Agent Cashier within the required timeframe, is a per se performance failure requiring no further COR investigation to substantiate — the absence of a matching payment is itself the deficiency.

4. **Zero-proceeds certification:** If, in any given month, the contractor collected only material categories that generate no proceeds (see Section 7.5, "Non-Recyclables"), the contractor shall affirmatively state this in that month's report and certify that no recyclable material with market value was collected. A contractor may not simply omit the proceeds line item; absence of a certification statement where proceeds are otherwise expected shall itself be treated as a reporting failure under QASP Row 2.

5. **Market value volatility.** The Government recognizes that market value for recyclable metals and other recyclable commodities fluctuates and may, at times, decline substantially or approach zero for reasons outside the contractor's control (e.g., regional or national commodity price swings, processor/recycler demand changes). This provision does not excuse or reduce the contractor's obligations under Sections 7.6(2) through (4); the contractor remains required to deliver any proceeds actually realized within the required timeframe, and to certify zero-proceeds months in accordance with Section 7.6(4).

   Where a proceeds discrepancy identified under Section 7.6(3) coincides with a documented, verifiable decline in market value for the specific material category/subtype in question, the COR shall consider that market data — in addition to, not in place of, the contractor's own required certification and documentation — before determining whether the discrepancy reflects a performance failure or a legitimate market-driven reduction in proceeds. The contractor bears the burden of certifying zero or reduced proceeds under Section 7.6(4); citing market volatility after the fact does not substitute for that certification and does not, by itself, cure a missing or late certification. The COR retains sole discretion to determine, based on the totality of the record, whether a given month's proceeds figure is consistent with prevailing market conditions.

6. **Documentation:** Copies of recycling/disposal transaction documentation supporting each proceeds payment (e.g., recycler settlement sheets, scale tickets, sale receipts) shall be provided to Logistics Service 90 (W) and the COR within 1 week of disposal, per Section 14 (Deliverables Summary). The COR shall independently confirm receipt of funds with the Agent Cashier — the COR shall not rely solely on the contractor's self-reported figures.

7. **Escalation for non-compliance:** Given documented prior performance issues with proceeds non-submission under this requirement, the CO/COR shall treat any missed, late, or unsubstantiated proceeds delivery as grounds for immediate issuance of a Contract Discrepancy Report (CDR) under QASP Section 4, without a warning period, and shall consider such failures an aggravating factor in any past performance (CPARS) evaluation and in the decision to exercise future ordering periods.

8. **No deduction of contractor costs.** The contractor shall remit 100% of the actual proceeds received from the recycler/processor for each load of recyclable material, with no deduction for transportation, processing, handling, sorting, scale fees, or administrative costs incurred by the contractor. Such costs are compensated separately through the contractor's per-pickup CLIN price under Section 3.

7.7 RETENTION OF TITLE — SCRAP REMAINS VA PROPERTY UNTIL PAYMENT CLEARS

The materials collected under this contract are excess Government personal property for which VA has no further use, disposed of for scrap value under VA's local scrap-sale authority (VA Directive/Handbook 7348) and the recycling-revenue-retention provisions of 41 C.F.R. § 102-38.295 and VA Financial Policy, Volume IV, Chapter 4. Collection of this material by the contractor constitutes a conditional sale of Government property, not an unconditional transfer.

(1) Title retention. Title to each load of scrap material remains with the Department of Veterans Affairs until the Agent Cashier has received and confirmed clearance of the corresponding proceeds payment for that specific load, in accordance with Section 7.6. Physical removal, transport, processing, or possession of the material by the contractor prior to payment clearance does not transfer title. Title transfers to the contractor only upon confirmed clearance of payment for that load or shipment.

(2) Backup remedies where title cannot practically be enforced. The parties recognize that once scrap material has been processed, melted, commingled, or resold by the contractor to a third party, VA's title interest in the specific physical material may no longer be practically recoverable. Accordingly, independent of the title-retention right described above, the contractor's right to collect and dispose of scrap material under this contract is conditioned on timely delivery of proceeds under Section 7.6, and failure to deliver proceeds for

any load — regardless of the condition, location, or disposition of the underlying material — constitutes a material breach and unjust enrichment of the contractor at the Government's expense. In such event, and in addition to any remedy arising from the title-retention right in 7.7(1), the Government reserves all remedies available under this contract, including the CDR process in QASP Section 4, and applicable law, including:
(a) Recovery of the fair market value of the unremitted proceeds, calculated using prevailing scrap/recyclable material rates at the time of pickup or sale, whichever is documented;
(b) Withholding of amounts otherwise due to the contractor under this or any other VA contract, to the extent permitted by law and regulation, as an offset against unremitted proceeds; and
(c) Treatment of the failure as a material breach supporting termination for default, in addition to the CDR and CPARS consequences described in Section 7.6(7).

8. SECURITY REQUIREMENTS

- Contractor personnel shall report to the warehouse or Ohio Western Reserve National Cemetery upon arrival and present valid identification.
- No logical (IT) system access is required or authorized under this contract.
- The 6500.6 requirements incorporated in this PWS (VA Handbook 6500.6 (October 2, 2026), Section 8, Sections 1, 2, 3, 5, 9, 10 and 13, and Appendix D) apply to contractor personnel for physical access, for any VA information the contractor may encounter incidentally, and for the handling of equipment and media. Their inclusion does not authorize logical (IT) access to VA systems.
- Physical access shall be supervised by VA personnel at all times.
- Scrap and recycled material may include equipment or media that contains or may contain VA information (for example, computers, copiers, printers, phones, and removable or fixed storage). The contractor shall not access, copy, retain, resell, or disclose any data found on such items, shall treat any VA information encountered as VA property subject to Sections 1 and 2 of the incorporated 6500.6 language, and shall immediately notify the COR/Station POC if data-bearing equipment appears not to have been sanitized by VA. Sanitization of VA media remains a VA responsibility prior to turnover.

9. GOVERNMENT-FURNISHED EQUIPMENT/INFORMATION (GFE/GFI)
Pallet jacks and flatbed carts will be made available for contractor use in locations where such equipment is normally used and housed (typically warehouse areas). The Government generally attempts to stage items in such areas, though this may not always be the case depending on the pickup location. The Government will not provide tow motors or forklifts. The contractor shall furnish all other equipment necessary to perform the required services**, including any liftgate or similar equipment needed to load items at locations without pallet jack/flatbed cart availability**. VA personnel may stage items using VA-owned equipment as needed prior to contractor pickup. For planning purposes, the contractor may ask the authorized requester (NX Equipment Team, Logistics Department, or CO) what types of items are expected to constitute the majority of the materials for a specific on-call pickup, to assist the contractor in determining appropriate equipment for that pickup. The Government will provide this information to the extent reasonably known at the time of the request, but this does not constitute a binding representation of actual pickup contents and does not relieve the contractor of its obligation to be prepared for variation in material type consistent with Section 3.

10. RISK CONTROL

- Contractor shall designate a supervisor authorized to communicate with VA warehouse personnel.
- No contact with patients is permitted.
- Contractor personnel shall comply with all site safety protocols and furnish appropriate PPE for their own staff.

- The contractor shall provide all training necessary to perform the work described in this contract. Training shall not hamper the quantity, quality, or timeliness of work required under the contract.

11. PLACE OF PERFORMANCE

All work shall occur at the Louis Stokes VA Medical Center and all sites identified in Section 3.1. The contractor shall provide transportation for travel to and from each identified site as needed to perform the requirements of this contract.

12. PERIOD OF PERFORMANCE (ORDERING PERIODS)

This contract shall be structured as five (5) ordering periods.

All services shall be ordered/performed on an indefinite-delivery, on-call/as-needed basis in accordance with Sections 3.2 and 3.3 throughout each ordering period.

Ordering Period	Dates
Ordering Period 1	12/15/2026 – 12/14/2027
Ordering Period 2	12/15/2027 – 12/14/2028
Ordering Period 3	12/15/2028 – 12/14/2029
Ordering Period 4	12/15/2029 – 12/14/2030
Ordering Period 5	12/15/2030 – 12/14/2031

13. COMMUNICATION AND ORDERING PLAN

Given the on-call/as-needed nature of this contract (see Sections 2 and 3.2), no formal phase-in transition is required, as there is no standing equipment, fixed recurring schedule, or incumbent asset handoff associated with this requirement. Instead, the contractor shall submit a Communication and Ordering Plan as part of its quote response, describing the contractor's proposed process for:

- Receiving and confirming pickup requests from the VANEOHS NX Equipment Team, Logistics Department, or the CO (per Section 3.2)
- Designated points of contact and after-hours/emergency contact procedures, if applicable
- Method(s) of communication (phone, email, or other system) the contractor will use to receive and confirm requests
- Internal dispatch procedure ensuring the 48-hour response requirement in QASP Row 1 can be consistently met

The Communication and Ordering Plan shall be validated and finalized in coordination with the COR within 10 business days after contract award.

14. DELIVERABLES SUMMARY

Deliverable	Frequency	Due To
Release documentation per pickup	Per pickup	VA site personnel (at time of pickup)
Recycling proceeds	Within 14 days of pickup/sale (see Section 7.6)	Agent Cashier, per Section 7.6 remittance address
Recycling/disposal documentation	Within 1 week of disposal	Logistics Service 90 (W)
Shipment log (date, time, quantities, and type of material shipped)	Maintained continuously	Available to COR upon request
Monthly Summary Performance Report	See Section 7.2	CO, COR, and GEMS Manager (see Section 7.1)
Annual Reconciliation and Certification Report	See Section 7.2	CO, COR, and GEMS Manager (see Section 7.1)
Quality Control Program plan	Once, prior to contract start; resubmit on revision	COR / Contracting Officer
Communication and Ordering Plan	Submitted with quote response; validated within 10 business days after award	Contracting Officer/COR
Limitations on Subcontracting Reporting (D5. Appendix E)	Within 30 calendar days after the start of each new ordering period (Ordering Periods 2–5). Each report shall document LoS compliance for the immediately preceding ordering period.	Contracting Officer

15. SERVICE CONTRACT LABOR STANDARDS / WAGE DETERMINATION

Service Contract Labor Standards apply to this contract. Applicable Wage Determinations can be found at www.SAM.gov. Please refer to Section D: Wage Determinations.

VA Handbook 6500.6

VA Handbook 6500.6, Acquisition Cybersecurity (October 2, 2026), Section 8 — VA Cybersecurity and Privacy Language for Inclusion in Acquisitions (Sections 1, 2, 3, 5, 9, 10 and 13; supersedes the Notice 24-12 text of 6500.6 Appendix C)

6500.6 Appendix D — Contractor Rules of Behavior
(VA Handbook 6500.6, March 12, 2010)

Applicability. The Contract Security Checklist for this requirement calls for Appendix C Sections 1, 2, 3, 5, 9, 10 and 13 and Appendix D. VA Handbook 6500.6 was reissued October 2, 2026 and now carries this language in Section 8 (lettered a through m). Using the checklist numbering, the sections below are 1 (General), 2 (VA Information Custodial), 3 (Access to VA Information and VA Information Systems), 5 (Security Incident Investigation), 9 (Product Integrity, Authenticity, Provenance, Anti-Counterfeit and Anti-Tampering), 10 (Viruses, Firmware and Malware) and 13 (Specialized Devices/Systems), reproduced without alteration other than the section numbers. These section numbers are separate from PWS Section 8 and PWS Appendices A and B. Appendix D is retained as previously incorporated. In Appendix D, references to the "COTR" mean the COR designated under this contract. Where a Handbook provision refers to logical access, systems, or software and no such access is authorized (see PWS Section 8), the provision applies only if and to the extent the contractor is later granted such access in writing by the CO.

1. GENERAL

(1) Contractors, Contractor personnel, Sub-Contractor and Sub-Contractor personnel (hereinafter referred to as “Contractor”) will be subject to the same Federal laws, regulations, standards, VA directives and handbooks as VA personnel regarding information and information system security and privacy.

(2) VA Cybersecurity and Privacy language included in the solicitation or contract applies to the Contractor and all Contractor affiliates and agents.

(3) All information systems, applications, and services operating on behalf of or within VA must meet or exceed all applicable federal cybersecurity and risk management minimum standards. At a minimum, systems shall implement and maintain compliance with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-37, Risk Management Framework for Information Systems and Organization: A System Life Cycle Approach for Security and Privacy, Federal Information Security Modernization Act of 2014 (FISMA) requirements, and all applicable federal laws, and Office of Management and Budget (OMB) mandates. Contractual terms, implementation approaches, or operational constraints shall not supersede or circumvent these federal minimum security and compliance requirements. Authority established under this handbook is limited to technical, and enterprise architecture matters; interpretation or adjudication of non-technical policy or programmatic content remains the responsibility of the appropriate business or governing policy offices.

2. VA INFORMATION CUSTODIAL

(1) The Contractor must provide unlimited rights to data / intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is Federal Acquisition Regulation (FAR) 52.227-14, Rights in Data – General.

(a) The Contractor must provide all custom-developed code and technical components developed in the performance of this contract (e.g., documentation; data models; schemas; metadata; architecture designs; configuration scripts; and artifacts required to develop, build, test, and deploy the code for or on behalf of VA) for storage in a VA- designated repository for custom-developed code in a format that allows VA to access, use, modify, distribute, and reuse it in accordance with the Source Code Harmonization and Reuse in Information Technology Act of 2024 (SHARE IT Act).

(b) The Contractor must provide any support and assistance deemed necessary for VA to comply with the SHARE IT Act (e.g., furnishing data for reporting and following federal and VA standards for custom code development).

(2) Information made available to the Contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the contract, service agreement, SOW, PWS, and / or PD. The Contractor shall not use VA information in any other manner without prior written approval from a VA CO. The Contractor shall disclose to the CO all Data to be collected, stored, and accessed and will only collect, store, and access the minimum Data necessary to perform its services. The Contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal laws, regulations, or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and / or policies. The primary clause used to define Government and Contractor data rights is FAR 52.227-14.

(3) The Contractor shall not make copies of VA information unless necessary to perform the requirements of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program, and VA Office of Information Security (OIS) Knowledge Service.

(4) VA information will not be co-mingled with any other data on the Contractor’s information systems or media storage systems. The Contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization. Exceptions to this paragraph will be granted only with the approval of the VA Program Office communicated to the Contractor by the VA CO.

(5) Except for uses and disclosures of VA information specifically authorized by this contract, the Contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The Contractor shall refer all requests for, or inquiries about, VA information and information systems to the VA CO.

(6) Notwithstanding the provision above, the Contractor shall not release VA records protected by Title 38 United States Code (U.S.C.) § 5705, Confidentiality of medical quality- assurance records, and / or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the Contractor is in receipt of a court order or other form of request for the above-mentioned information, the Contractor shall immediately refer that court order or request to the VA CO.

(7) If a VHA contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with Veterans Health Administration (VHA) Directive 1605.05, Business Associate Agreements. If there is an

executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.

(8) Information made available to the Contractor by VA for the performance or administration of this contract, or information developed by the Contractor in performance or administration of the contract, will be protected and secured in accordance with VA Directive 6500, VA Directive 6510, VA Identity, Credential, and Access Management, and VA Handbook 6510, VA Identity, Credential and Access Management.

(9) The Contractor shall store VA sensitive information in an encrypted form, using VA-approved encryption tools which are Federal Information Processing Standards (FIPS)-validated in accordance with requirements on the OIS Knowledge Service. The Contractor shall verify the integrity of transmitted security and privacy attributes. The Contractor shall provide the capability to check the integrity of VA information while it resides in the external system.

(10) The Contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with NIST SP 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations. The cryptographic module used must be FIPS-validated in accordance with requirements on the OIS Knowledge Service.

(11) The Contractor’s firewall security shall meet or exceed VA’s minimum requirements.

(12) The Contractor shall retain all data storage media which have been used to create, collect, process, store, or disseminate any VA data, information, or agency record in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.

(13) The Contractor shall not store or maintain VA sensitive information, including on any form of removable or transportable media, without CO’s prior written approval.

(14) The Contractor, in accordance with Federal and VA policy, shall maintain backup of Data containing VA sensitive information, image repositories, and provisioned environments. The backup storage infrastructure shall be located in physically protected, limited-access facilities within the United States and governed by the cybersecurity Controls set forth herein.

(15) The Contractor shall provide its plan for the disposition of all VA data in its possession, including destruction and return, in accordance with VA Directive 6500 and requirements specified on the VA OIS Knowledge Service, prior to termination or completion of this contract.

(16) The Contractor shall return to VA all data storage media which have been used to create, collect, process, store, or disseminate any VA data, information, or agency record which cannot be sanitized or destroyed as required by Section 2(15) of this contract. Such media include, but are not limited to, printed or handwritten hardcopies (containing text or images), magnetic tapes, magnetic discs, optical discs, solid state devices, or any other removable digital or analog data storage media.

(17) Media shall be returned using VA-approved methods for secure data transfer. If the media contain VA sensitive information, that information must be encrypted by a VA-approved FIPS-validated encryption tool in accordance with requirements on the OIS Knowledge Service. If the Contractor chooses to ship the media, and the media contain no VA sensitive information, such shipment shall be performed in

accordance with VA Directive 6340, Enterprise Mail Management. If any of the media to be shipped contain VA Sensitive Information, the shipment shall be performed in accordance with VA Directive 6609, Mailing of Sensitive Personal Information.

(18) The Contractor shall self-certify that the data disposition requirements in Section 2(12)-(15) of this contract have been satisfied, and shall send this self-certification to the VA Program Office and the VA CO within 30 business days of the completion or termination of this contract.

(19) At the end of any contracted lease, loan, or trade-in of equipment, VA shall not return any electronic storage media included in or with equipment if that media has been used to create, collect, process, store, or disseminate VA data, information, or agency record. Any exception to this stipulation will be granted only with the written approval of the VA CO.

(20) VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of Contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements in accordance with Title 38 U.S.C. § 5722(b)(1). This includes, but is not limited to, periodic assessments of the risk and magnitude of harm that could result from the unauthorized access, use, disclosure, disruption, modification, or destruction of information and information systems that support the operations and assets of VA. The Contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to Contractors associated with the contract) to VA, VA's Office Inspector General (OIG), and / or the Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.

3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

(1) All Contractors shall comply with conditions specified in the Veterans Affairs Acquisition Regulation (VAAR) 852.204-71(d), and Contractor operations are required to be in U.S. All Contractors working with VA information must be permanently located within a jurisdiction subject to the law of the U.S. to the maximum extent practicable. The Contractor shall also ensure to restrict the geographic location of information processing and data storage to facilities located within the legal jurisdictional boundary of the U.S. If services are proposed to be performed abroad, the Contractor must state where all non-U.S. services are provided and obtain the CO’s prior written approval where required by law.

(2) The Contractor shall deliver to VA a detailed risk mitigation plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the Contracting Officer (CO) in writing prior to access being granted.

(3) The Contractor shall ensure that all Contractors assigned to work on the contract undergo the same security investigations and obtain the same levels of clearance as VA employees who have been granted access to VA information at the same level of sensitivity. The level and process of background security investigations for Contractors shall be in accordance with VA Directive 0710, Personnel Vetting Program, and VA Handbook 0710, Personnel Vetting Program.

(4) The Contractor shall request logical (electronic) or physical access to VA information and VA information systems only to the extent that the requested information is needed to perform the services specified in the solicitation or contract. Contractors who require privileged access to any VA Information System (or component) shall complete the VA elevated privilege access request processes before privileged access is granted.

(5) Before being granted access to VA information or VA information systems, Contractors shall:

(a) Successfully complete VA Privacy and Information Security Awareness and Rules of Behavior (RoB) course [Talent Management System (TMS) #10176] upon contract initiation and annually thereafter;

(b) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the VA RoB for Organizational Users; and

(c) Successfully complete all additional cybersecurity or privacy training required for personnel granted equivalent information system or information access.

(6) The Contractor shall provide to the VA Program Office a copy of each applicable employee's training certificates and certificate of signature of the VA RoB for Organizational Users within five (5) business days of contract initiation and annually thereafter. Failure by the Contractor to complete the mandatory annual training is grounds for suspension or termination of all privileges to access VA information physically or electronically and removal from work on the contract until such time as the required training has been successfully completed.

(a) The Contractor shall notify the VA Program Office and the VA CO in writing immediately (within 24 hours) after any of the following events:

i The Contractor no longer needs access to VA information or VA information systems.

ii The Contractor is terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.

iii The Contractor believes that a member of their own personnel may pose a threat to the Contractor's working environment or to any Contractor-owned assets (e.g., property, buildings, confidential data, COs, employees, networks, systems, trade secrets and / or VA data entrusted to the Contractor).

iv Discovery or revelation of previously undisclosed changes to a Contractor's background history, background investigation, or employee record.

v The Contractor has their authorization to work in the U.S. revoked.

vi The contract by which Contractors provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and / or physical access for the Contractor.

(7) The Contractor is not permitted to access the VA network or internal resources from any foreign country. When travel outside the United States is required for official VA business or an international work location is explicitly specified in the contract, the Contractor must submit a request for accessing the VA internal network and resources internationally subject to the written approval by the Contracting Officer's Representative (COR) and all required VA approvers. If approved, the Contractor must adhere to all approval conditions for accessing VA networks or internal resources via VA-issued Government Furnished Equipment (GFE), contractor supplied devices, personal devices with appropriate remote desktop features, or personal devices enrolled in VA's Bring Your Own Device (BYOD) program.

(8) The Contractor is not permitted to travel outside the U.S. with any VA- issued GFE. If international travel is required for official VA business or an international work location is explicitly specified in the contract, an exception may be requested and is subject to written approval by the COR and all required VA approvers.

(9) In such cases of contract fulfillment, termination, or other causes, the Contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by the Contractor. These measures include (but are not limited to): removing and then securing Personal Identification Verification (PIV) badges and PIV–Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA- issued laptops, and authentication tokens. Contractors shall notify the VA Program Office immediately to initiate access removal. (10) Contractors who no longer require VA access will return VA-issued assets to VA (e.g., documents, electronic equipment, keys, and parking passes). PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, Contractors shall notify the VA Program Office.

5. SECURITY INCIDENT INVESTIGATION

(1) The Contractor shall immediately (within one hour) report suspected security / privacy incidents (including intrusions) to the CO and VA Office of Information and Technology’s (OIT) Enterprise Service Desk (ESD) by calling (855) 673-4357 [Text Telephones (TTY)-based Telecommunications Relay Service: 711].

(2) The Contractor's immediate notice to VA about the incident shall include the following information about the incident, to the extent that this information is known:

(a) Date and time (known or approximated) the security incident occurred.

(b) Names of individuals involved (when applicable).

(c) Location (physical and / or logical, as applicable) of the incident.

(d) Event logs related to the incident in a format agreed upon by the Contractor and VA.

(e) Actual or potential security issues associated with any Contractor- designed Product Known Exploited Vulnerabilities (KEVs).

i The Contractor shall create, implement, and maintain a process to record, track, and report all KEVs.

(f) Amount (in number of files or records) of data belonging to VA believed to have been compromised; and

(g) Immediate remediation and mitigation measures the Contractor is taking to minimize exposure to the vulnerability and impact of future incidents of a similar nature including timeframes.

(3) After providing the initial incident summary to VA, the Contractor shall continue to provide written updates on any new relevant information about the incident and provide updates at the request of VA

officials. The Contractor shall fully cooperate with VA or third-party entity performing an independent risk analysis. Failure to cooperate may be deemed a material breach and grounds for contract termination.

(4) If the incident involves theft or break-in or other criminal activity, the Contractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including to the VA OIG and to the VA Office of Security and Law Enforcement. The Contractor shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

(5) The Contractor shall comply with VA Handbook 6500.2, Management of Breaches Involving Sensitive Personal Information, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.

(6) The Contractor shall follow VA Directive 6500 and VA OIS Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.

(7) With respect to unsecured Protected Health Information (PHI), the Contractor is deemed to have discovered a data breach when the Contractor knew or should have known of breach of such information. When a business associate is subject to the requirements of a VHA-issued contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.

(8) If the Contractor or any of its agents fails to protect VA Sensitive Personal Information (SPI) or otherwise engages in conduct which results in a data breach involving any VA SPI, the Contractor processes or maintains under the contract; the Contractor shall pay liquidated damages to VA as set forth in VAAR clause 852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs.

9. PRODUCT INTEGRITY, AUTHENTICITY, PROVENANCE, ANTI- COUNTERFEIT AND ANTI-TAMPERING

(1) The Contractor shall comply with CFR Title 15 Part 791, Securing the Information and Communications Technology and Services (ICTS) Supply Chain, including any applicable prohibition, mitigation measure, or other requirement concerning ICTS transactions involving a foreign adversary. ICTS Transactions are defined as any acquisition, importation, transfer, installation, dealing in or use of any information and communications technology or service, including ongoing activities, such as managed services, data transmission, software updates, repairs or the platforming or data hosting of applications for consumer download.

(2) In accordance with Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act (NDAA) for Fiscal Year 2019, the FAR, the VAAR, and all other relevant laws and regulations, the Contractor is prohibited from providing to VA any equipment, system, or service that uses telecommunications or IT equipment or services produced or provided by entities that the VA is prohibited from conducting business with. Conducting business includes, but is not limited to, procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service.

(3) The Contractor shall purchase or acquire equipment from an Original Equipment Manufacturer (OEM) or an authorized reseller of an OEM. The Contractor shall attest that all equipment procured to satisfy requirements of the contract is authentic. If the required equipment is not available from an OEM or an

authorized reseller, the Contractor shall submit with their proposal details of circumstances preventing procurement of the equipment from an OEM or authorized reseller.

(4) The Contractor shall establish, implement, and provide documentation of the Contractor's supply chain risk management practices governing the delivery of hardware, firmware, and software (including software updates and patches) specified under this agreement. Such documentation will include chain-of-custody practices, integrity management program for Contractor-provided components or parts, and replacement parts requests. The Contractor shall make spare parts available. The Contractor shall specify how digital delivery of procured software or data products (including updates and patches) will be validated and monitored to ensure consistent and secure delivery. The Contractor shall apply encryption technology to protect and validate the authenticity and integrity of procured products throughout their delivery processes.

(5) If a Contractor provides software or patches to VA, the Contractor shall also publish or provide a digital hash for validating the authenticity and integrity of the software. This hash must a FIPS-validated hash function in accordance with the requirements on the OIS Knowledge Service.

(6) The Contractor shall provide a Software Bill of Materials (SBOM) for each software product provided to VA by the Contractor. The SBOM will consist of a list of software components, associated metadata, and documentation which collectively comprise the software product. The SBOM must be generated in one of the data formats defined in the National Telecommunications and Information Administration (NTIA) report, The Minimum Elements for a Software Bill of Materials (SBOM), or comply with other relevant federal guidance regarding format.

(7) VA may require the Contractor to attest to conformity with secure software development practices when risk analysis indicates (e.g. providing self- attestation through the Secure Software Development Attestation Form).

(8) The Contractor shall use or arrange for the use of VA approved trusted channels to ship procured products, such as U.S. registered mail and / or tamper-evident packaging for physical deliveries.’

(9) Throughout the delivery process, the Contractor shall demonstrate a capability for detecting and preventing unauthorized access (tampering). (10) The Contractor shall obtain and maintain chain-of-custody documentation for procured products. The Contractor shall require all IT hardware products to be delivered in tamper-evident packaging.

10. VIRUSES, FIRMWARE AND MALWARE

(1) The Contractor shall exercise due diligence to ensure that all provided software and patches, including third-party patches, are free of viruses and / or malware before releasing them to or installing them on VA information systems. If the Contractor or any of its agents fails to protect VA SPI or otherwise engages in conduct which results in a data breach involving any VA SPI the Contractor processes or maintains under the contract, the Contractor shall pay liquidated damages to VA as set forth in VAAR 852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs.

(2) The Contractor warrants it has no knowledge of and did not insert, any malicious virus and / or malware code into any software or patches provided to VA which could potentially harm or disrupt VA information systems. If a virus or other malware is introduced, the Contractor shall:

(a) Take all necessary actions to correct the incident, to include all assistance to VA to eliminate the virus or other malware throughout VA's information networks, computer systems and information systems; and

(b) Use commercially reasonable efforts to restore operational efficiency and remediate damages due to data loss or data integrity damage, if the virus or other malware causes a loss of operational efficiency, data loss, or damage to data integrity.

(3) The Contractor shall provide or arrange for the provision of technical justification as to why any "false positive" hit has taken place to ensure their code's supply chain has not been compromised. Justification may be required, but is not limited to, when install files, scripts, firmware, or other Contractor-delivered software solutions (including third-party install files, scripts, firmware, or other software) are flagged as malicious, infected, or suspicious by an anti-virus service / solution.

13. SPECIALIZED DEVICES / SYSTEMS (MEDICAL DEVICES, SPECIAL PURPOSE SYSTEMS, RESEARCH SCIENTIFIC COMPUTING DEVICES)

(1) Contractor-supplied / Contractor-delivered Medical Devices, Special Purpose Systems (SPS), Research Scientific Computing Devices (RSCD), Internet of Things (IoT) devices, or other Operational Technology (OT) elements shall comply with all applicable Federal laws, regulations, and policies, including all applicable VA policies. The specification, design, development, testing, evaluation, and authorization of new Medical Devices, SPS, RSCDs, IoT devices, or OT elements must comply with the requirements specified by VA Handbook 6500. The Contractor shall identify and document any deviations from Federal laws, regulations, and exemptions from VA requirements outlined in this Handbook through the VA's Enterprise Risk Analysis (ERA) for Medical and Specialized Devices / Systems process. All such devices must undergo the ERA process prior to implementation and initiation of the ATO process.

(2) The Contractor shall address and / or integrate applicable VA Directive 6500, VA Handbook 6500, and OIS Knowledge Service specifications in delivered IT systems / solutions products and / or services. If systems / solutions products and / or services do not directly match VA security requirements, the Contractor shall work though the VA Program Office to define and implement risk remediation or mitigation.

(3) The Contractor shall certify to the VA Program Office that Contractor provided devices / systems which have completed the VA ERA process for Specialized Devices / Systems are fully functional and operate correctly as intended. Whenever VA determines a new VA ERA needs to be created or that a previously approved ERA requires an update (e.g., after that device has undergone a major change), the Contractor shall provide the technical support necessary to specify the configuration settings.

(4) The Contractor shall ensure all Contractor-provided medical devices comply with practices documented by the FDA in Cybersecurity in Medical Devices: Quality Management System Considerations and the Content of Premarket Submissions and Postmarket Management of Cybersecurity in Medical Devices.

(5) The Contractor shall ensure all Contractor-provided IoT devices comply with the Federal Communications Commission's U.S. Cyber Trust Mark Program requirements by January 4, 2027.

(6) The Contractor shall ensure all Contractor-provided IoT devices comply with NIST IoT guidance and standards such as NIST SP 800-213, IoT Device Cybersecurity Guidance for the Federal Government: Establishing IoT Device Cybersecurity Requirements. In accordance with the IoT Cybersecurity Improvement Act of 2020 and FISMA reporting guidance memo for the current fiscal year, VA will not

procure or obtain any IoT device that it determines would prevent compliance with the NIST IoT standards and applicable VA policies. This prohibition may be waived only if the VA Chief Information Officer (CIO), or the CIO's designee, determines that at least one of the following conditions is met:

(a) The waiver is necessary in the interest of national security.

(b) Procuring, obtaining, or using the IoT device is necessary for research purposes; or

(c) The device is secured using alternative and effective methods appropriate to its function.

(7) The Contractor shall design its devices / systems to be capable of accepting all applicable security patches. The application of patches may be accomplished either with Contractor personnel support or without (e.g., through automation). If patching can only be completed by Contractor personnel, the Contractor shall commit the resources needed to patch all applicable devices / systems at all VA locations. If unique patching instructions or packaging are needed, the Contractor shall provide the necessary information in conjunction with the validation / testing of the patch. The Contractor shall apply security patches within thirty (30) business days of the patch release and shall have a formal tracking process for any security patches not implemented. For each patch that cannot be applied to a particular device / system, the Contractor shall provide a documented explanation of why the device / system cannot be patched.

(8) The Contractor shall implement Secure by Design security techniques in the development, design, and architecture of Devices to:

(a) Protect the confidentiality, integrity, and availability of Device Data throughout its lifecycle during the distribution, deployment, and maintenance of Devices; and

(b) Maintain the critical functionality of Devices throughout any Cybersecurity Event.

(9) The Contractor shall document and deliver to the CO that:

(a) All Product communications capabilities (e.g., protocols, ports, services, dataflows) are fully documented and disclosed.

(b) All network services including protocols, ports, and services not required for Product's use shall be disabled and / or blocked prior to or during installation. Alternatively, Contractors shall document instructions to disable and / or block network services; and

(c) Recommends additional mitigating controls when the Product's features cannot be disabled and / or blocked. (10) The Contractor shall disclose to the CO all accounts on Contractor- supplied Products. All accounts not required for proper operation, use, maintenance, or administration of the Contractor-supplied Product shall be removed before delivery or during installation. (11) The Contractor shall ensure that all Contractor-supplied / Contractor- delivered devices / systems provided to VA are capable of one of the following:

(a) Having a VA-approved antivirus / anti-malware solution installed and maintained capable of executing the antivirus / anti-malware solution's processes for file quarantining and installation of updates (whether proactive or in response to incidents); or

(b) Having a whitelisting application installed that specifies which software is permitted to be installed on the device / system which prevents installation of all other non-whitelisted software. Option (b) is permissible only for devices / systems not capable of Option (a). (12) The Contractor shall collect, retain, and provide to the CO logs including time / date stamps of operational events from systems, services, applications, network devices, security devices, authentication controls, and anti-virus / anti-malware for Contractor-managed Security Controls related to systems, services, applications, and data that are owned, rented, leased, or shared by VA in accordance with the Health Insurance Portability and Accountability Act of 1996 (HIPAA), NARA requirements, VA Directive 6300, VA Handbook 6300.1, and applicable VA Records Control Schedules. (13) The Contractor shall represent and warrant that device/system can log operational functions and ensure that the CO can review all logged data any time after data is logged for the device/system in accordance with HIPAA, NARA requirements, VA Directive 6300, VA Handbook 6300.1, and applicable VA Records Control Schedules. (14) Prior to a device / system delivery to or installation in a VA facility, the Contractor shall provide documented verification that all software embedded within that device / system is free from known viruses and malware. (15) The Contractor shall harden any operating system provided in any Contractor-designed Product including, but not limited to:

(a) Removal of all software and installation media not specifically required for such Products.

(b) Removal or disablement of all scripts, messaging services, data, and third-party installation tools after installation.

(c) Disablement to the extent feasible of all physical hardware ports and drives not required for use or operation of such Products after installation; and

(d) Documenting of all hardening installation media, tools, and processes used, and all Product features, ports, drives, software, and code that remained and was removed, disabled, and not disabled. (16) Devices and other equipment or systems containing media (e.g., hard drives, optical disks, solid state drives, and storage via chips / firmware) with VA sensitive information will be returned to the Contractor with media removed. When the contract requires return of equipment, the options available to the Contractor are the following:

(a) The Contractor shall accept the system without the drive, firmware and solid state.

(b) VA’s initial device purchase will include a spare or replacement medium which must be installed in place of the original medium prior to return of the device / system.

(c) When the highly specialized or proprietary nature of the device / system hardware, firmware, or software makes removal and replacement of the data storage medium impossible without impairing the device’s / system’s ability to function.

i The Contractor shall have an existing BAA, Data Use Agreement (DUA), or other agreement in place with VA permitting it to receive the device / system with its data storage medium containing VA sensitive information still intact; or

ii The Contractor shall, to the greatest extent possible which does not negatively impact operation of the device / system, use a VA-approved method to non-destructively sanitize all data from every hard drive, Complementary Metal-Oxide-Semiconductor (CMOS), Programmable Read-Only Memory (PROM), solid state device, and firmware within the device / system. Selective clearing

down to patient data folder level is recommended using VA-approved and validated overwriting technologies / methods / tools. Applicable media sanitization specifications need to be defined and described by the VA Program Office and directly included in the solicitation, contract, or order.

6500.6 APPENDIX D — CONTRACTOR RULES OF BEHAVIOR

(VA Handbook 6500.6, March 12, 2010)

This User Agreement contains rights and authorizations regarding my access to and use of any information assets or resources associated with my performance of services under the contract terms with the Department of Veterans Affairs (VA). This User Agreement covers my access to all VA data whether electronic or hard copy ("Data"), VA information systems and resources ("Systems"), and VA sites ("Sites"). This User Agreement incorporates Rules of Behavior for using VA, and other information systems and resources under the contract.

1. GENERAL TERMS AND CONDITIONS FOR ALL ACTIONS AND ACTIVITIES UNDER THE CONTRACT
   a. I understand and agree that I have no reasonable expectation of privacy in accessing or using any VA, or other Federal Government information systems.
   b. I consent to reviews and actions by the Office of Information & Technology (OI&T) staff designated and authorized by the VA Chief Information Officer (CIO) and to the VA OIG regarding my access to and use of any information assets or resources associated with my performance of services under the contract terms with the VA. These actions may include monitoring, recording, copying, inspecting, restricting access, blocking, tracking, and disclosing to all authorized OI&T, VA, and law enforcement personnel as directed by the VA CIO without my prior consent or notification.
   c. I consent to reviews and actions by authorized VA systems administrators and Information Security Officers solely for protection of the VA infrastructure, including, but not limited to monitoring, recording, auditing, inspecting, investigating, restricting access, blocking, tracking, disclosing to authorized personnel, or any other authorized actions by all authorized OI&T, VA, and law enforcement personnel.
   d. I understand and accept that unauthorized attempts or acts to access, upload, change, or delete information on Federal Government systems; modify Federal government systems; deny access to Federal government systems; accrue resources for unauthorized use on Federal government systems; or otherwise misuse Federal government systems or resources are prohibited.
   e. I understand that such unauthorized attempts or acts are subject to action that may result in criminal, civil, or administrative penalties. This includes penalties for violations of Federal laws including, but not limited to, 18 U.S.C. §1030 (fraud and related activity in connection with computers) and 18 U.S.C. §2701 (unlawful access to stored communications).
   f. I agree that OI&T staff, in the course of obtaining access to information or systems on my behalf for performance under the contract, may provide information about me including, but not limited to, appropriate unique personal identifiers such as date of birth and social security number to other system administrators, Information Security Officers (ISOs), or other authorized staff without further notifying me or obtaining additional written or verbal permission from me.
   g. I understand I must comply with VA's security and data privacy directives and handbooks. I understand that copies of those directives and handbooks can be obtained from the Contracting Officer's Technical Representative (COTR). If the contractor believes the policies and guidance provided by the COTR is a material unilateral change to the contract, the contractor must elevate such concerns to the Contracting Officer for resolution.
   h. I will report suspected or identified information security/privacy incidents to the COTR and to the local ISO or Privacy Officer as appropriate.

2. GENERAL RULES OF BEHAVIOR

a. Rules of Behavior are part of a comprehensive program to provide complete information security. These rules establish standards of behavior in recognition of the fact that knowledgeable users are the foundation of a successful security program. Users must understand that taking personal responsibility for the security of their computer and the information it contains is an essential part of their job.

b. The following rules apply to all VA contractors. I agree to:

1. Follow established procedures for requesting, accessing, and closing user accounts and access. I will not request or obtain access beyond what is normally granted to users or by what is outlined in the contract.
2. Use only systems, software, databases, and data which I am authorized to use, including any copyright restrictions.
3. I will not use other equipment (OE) (non-contractor owned) for the storage, transfer, or processing of VA sensitive information without a VA CIO approved waiver, unless it has been reviewed and approved by local management and is included in the language of the contract. If authorized to use OE IT equipment, I must ensure that the system meets all applicable 6500 Handbook requirements for OE.
4. Not use my position of trust and access rights to exploit system controls or access information for any reason other than in the performance of the contract.
5. Not attempt to override or disable security, technical, or management controls unless expressly permitted to do so as an explicit requirement under the contract or at the direction of the COTR or ISO. If I am allowed or required to have a local administrator account on a government-owned computer, that local administrative account does not confer me unrestricted access or use, nor the authority to bypass security or other controls except as expressly permitted by the VA CIO or CIO's designee.
6. Contractors' use of systems, information, or sites is strictly limited to fulfill the terms of the contract. I understand no personal use is authorized. I will only use other Federal government information systems as expressly authorized by the terms of those systems. I accept that the restrictions under ethics regulations and criminal law still apply.
7. Grant access to systems and information only to those who have an official need to know.
8. Protect passwords from access by other individuals.
9. Create and change passwords in accordance with VA Handbook 6500 on systems and any devices protecting VA information as well as the rules of behavior and security settings for the particular system in question.
10. Protect information and systems from unauthorized disclosure, use, modification, or destruction. I will only use encryption that is FIPS 140-2 validated to safeguard VA sensitive information, both safeguarding VA sensitive information in storage and in transit regarding my access to and use of any information assets or resources associated with my performance of services under the contract terms with the VA.
11. Follow VA Handbook 6500.1, Electronic Media Sanitization to protect VA information. I will contact the COTR for policies and guidance on complying with this requirement and will follow the COTR's orders.
12. Ensure that the COTR has previously approved VA information for public dissemination, including e-mail communications outside of the VA as appropriate. I will not make any unauthorized disclosure of any VA sensitive information through the use of any means of

communication including but not limited to e-mail, instant messaging, online chat, and web bulletin boards or logs.

13. Not host, set up, administer, or run an Internet server related to my access to and use of any information assets or resources associated with my performance of services under the contract terms with the VA unless explicitly authorized under the contract or in writing by the COTR.
14. Protect government property from theft, destruction, or misuse. I will follow VA directives and handbooks on handling Federal government IT equipment, information, and systems. I will not take VA sensitive information from the workplace without authorization from the COTR.
15. Only use anti-virus software, antispyware, and firewall/intrusion detection software authorized by VA. I will contact the COTR for policies and guidance on complying with this requirement and will follow the COTR's orders regarding my access to and use of any information assets or resources associated with my performance of services under the contract terms with VA.
16. Not disable or degrade the standard anti-virus software, antispyware, and/or firewall/intrusion detection software on the computer I use to access and use information assets or resources associated with my performance of services under the contract terms with VA. I will report anti-virus, antispyware, firewall or intrusion detection software errors, or significant alert messages to the COTR.
17. Understand that restoration of service of any VA system is a concern of all users of the system.
18. Complete required information security and privacy training, and complete required training for the particular systems to which I require access.

3. ADDITIONAL CONDITIONS FOR USE OF NON-VA INFORMATION TECHNOLOGY RESOURCES

a. When required to complete work under the contract, I will directly connect to the VA network whenever possible. If a direct connection to the VA network is not possible, then I will use VA approved remote access software and services.
b. Remote access to non-public VA information technology resources is prohibited from publicly-available IT computers, such as remotely connecting to the internal VA network from computers in a public library.
c. I will not have both a VA network line and any kind of non-VA network line including a wireless network card, modem with phone line, or other network device physically connected to my computer at the same time, unless the dual connection is explicitly authorized by the COTR.
d. I understand that I may not obviate or evade my responsibility to adhere to VA security requirements by subcontracting any work under any given contract or agreement with VA, and that any subcontractor(s) I engage shall likewise be bound by the same security requirements and penalties for violating the same.

4. STATEMENT ON LITIGATION

This User Agreement does not and should not be relied upon to create any other right or benefit, substantive or procedural, enforceable by law, by a party to litigation with the United States Government.

5. ACKNOWLEDGEMENT AND ACCEPTANCE

I acknowledge receipt of this User Agreement. I understand and accept all terms and conditions of this User Agreement, and I will comply with the terms and conditions of this agreement and any additional VA warning banners, directives, handbooks, notices, or directions regarding access to or use of information systems or information. The terms and conditions of this document do not supersede the terms and conditions of the signatory's employer and VA.

Print or type your full name
Signature

Last 4 digits of SSN
Date
Office Phone
Position Title
Contractor's Company Name

Please complete and return the original signed document to the COTR within the timeframe stated in the terms of the contract.

QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

The following table constitutes the basis on which the Government will evaluate contractor performance. Performance below the AQL for a given requirement may result in issuance of a Contract Discrepancy Report (CDR), payment deductions, and/or reflect in the contractor's CPARS evaluation, in accordance with Section 12.

ID	Performance Objective	Performance Threshold	AQL	Method of Surveillance	Incentive/Disincentive
1	Contractor adheres to the work schedule and picks up all scrap/recycling within 48 hours (excluding weekends and Federal Holidays; see Section 3.5(g)) of notification from an authorized requester per Section 3.2, reporting on-site with appropriately sized vehicle(s) (box truck or similar; see Sections 3 and 3.5) to load and haul away all designated materials in a single visit whenever practicable ***Declining to collect a prohibited item identified under Section 4.1 does not constitute a failure to perform under this row, provided the remainder of the authorized pickup is completed***	Contractor successfully performs the required services throughout the period of performance	95%	COR/Station POC review at time of initial call and pickup completion	**Incentive:** favorable performance review and exercise of future ordering periods. **Disincentive:** a Contract Discrepancy Report (CDR) will be issued on the first instance of failure to provide the acceptable level of service and may lead to termination of the contract.
2	Contractor adheres to all reporting and Agent Cashier proceeds requirements in Section 7	Contractor successfully provides the required monthly and annual reports, and delivers/matches recycling proceeds, per Section 7	95%	COR/Station POC/GEMS Manager review of reports; COR/Agent Cashier reconciliation per Section 7.6	Same as Row 1
3	All waste is disposed of in accordance with Ohio EPA and US EPA guidelines	Contractor successfully certifies that all waste is disposed of in accordance with Ohio EPA and US EPA guidelines	100%	COR/Station POC collects and validates monthly reports; COR to inspect disposal/recycling facility annually to verify compliance	Same as Row 1
4	All areas surrounding pickup/staging locations are left clean, including any material dropped during loading/hauling	Contractor successfully removes all scrap, leaving the area in clean condition	95%	COR/facility POC reports any discrepancies to the CO	Same as Row 1
5	Contractor provides complete, accurate release documentation for all items removed, inspected by VA site personnel	Contractor successfully provides release documentation for	100%	COR review of release documents against pickup log	Same as Row 1

	prior to departure	every pickup			
6	Contractor furnishes monthly invoices in arrears, correctly identifying all applicable CLINs/SLINs from the price/cost schedule	Contractor successfully provides timely, complete invoices in accordance with this PWS	95%	COR/Station POC reviews and reports any discrepancies to the CO	Same as Row 1
7	Recycling proceeds delivered to the LSVAMC Agent Cashier match the material Category/Subtype figures reported for the corresponding period, per Section 7.6. This is a zero-tolerance requirement given documented prior contract performance issues with proceeds non-submission.	Contractor successfully provides proceed disbursements that match reported figures, delivered per the timing in Section 7.6, for every applicable pickup with no exceptions	100% — no threshold below full compliance is acceptable for this requirement	COR independently confirms every proceeds payment directly with the Agent Cashier (not contractor self-report) and reconciles against monthly reports per Section 7.6	**Incentive:** favorable performance review and exercise of future ordering periods. **Disincentive:** immediate CDR on first instance (no warning period), documented as an aggravating factor in CPARS, and treated as a material breach that may support termination for default per QASP Section 4.
8	Department of Labor – Wage Determination compliance: Contractor submits confirmation of compliance with the current DOL Wage Determination hourly rate, if requested by the CO in writing, within four (4) hours of request, which may include an itemized list of hourly rates paid to employees performing services under this contract	Contractor provides confirmation as requested	100%	CO conducts random compliance checks with the contractor as necessary	**Incentive:** satisfactory or better CPARS/past performance rating and option period renewal. **Disincentive:** the CO will refer the matter to the Department of Labor for review and action.
9	Contractor only performs pickups initiated by, or expressly authorized by, the VANEOHS NX Equipment Team, Logistics Department, or the CO, per Section 3.2	Contractor successfully declines/verifies all pickup requests from unauthorized requesters before dispatch	100%	COR cross-checks all invoiced pickups against authorized requester logs maintained by the NX Equipment Team/Logistics Department	**Disincentive:** non-payment for any unauthorized pickup performed, plus CDR issuance under QASP Section 4.

1. QUALITY CONTROL PROGRAM

The contractor shall be responsible for effective implementation of its own Quality Control (QC) program and shall be responsive to the Government's Quality Assurance Surveillance Plan (QASP) conducted by the COR/Station POC. The contractor shall have a QC program to ensure the requirements of this contract are met as specified. One copy of the contractor's basic QC program shall be submitted for approval by the COR/Station POC; subsequent changes must also be reviewed and approved, with final approval by the Contracting Officer. The program shall include, at minimum:

- An inspection system covering the performance indicators in the QASP performance table
- A method for identifying service deficiencies before the level of performance becomes unacceptable
- A file of all QC inspections, results, and any corrective actions taken, maintained by the contractor throughout the contract period. This file is Government property, available to the COR/Station POC

during normal working hours, and shall be turned over to the Government within 14 days of contract completion or termination.

2. QUALITY ASSURANCE SURVEILLANCE PLAN (QASP)

A Quality Assurance Surveillance Plan (QASP) has been developed to aid the Government in providing effective, systematic surveillance of contractor performance under this contract. The QASP provides for monitoring all contract requirements through a combination of the following methods:

- Check-in at all locations using the hospital tracking system, where applicable
- Contractor-furnished reports, including pickup data (see Section 7)
- Random observation
- Client/customer complaints
- Surveillance activity checklist

Where a hospital tracking system is in use, the contractor is required to check in upon arrival at each designated location (e.g., via QR code at entry points, front desks, or as provided by the POC), and to record time, date, location, and details of services provided.

The QASP is a "living document" and the Government may review and revise it periodically in coordination with the contractor to ensure it remains valid, useful, and enforceable. Copies of the original QASP and any revisions shall be provided to the contractor and to Government officials implementing surveillance.

> The objective of this surveillance plan is to evaluate performance in key areas. The Government is primarily interested in the final product or service being provided, not the specific method by which the contractor accomplishes it.

3. PERFORMANCE MONITORING

The Government will periodically evaluate contractor performance by appointing representative(s) from serviced facilities to monitor performance and ensure services are received. The Government representative will evaluate performance through intermittent observation, on-site inspection of the contractor's quality control program, and review of complaints from facility personnel.

- Routine collections and pickups will be observed by a Government representative at random intervals no less than once per month.
- The Government representative may perform on-site inspections of the contractor's disposal/recycling facility(ies), if applicable, no less than once annually.
- The Government may increase the frequency of quality control inspections if warranted by repeated failures or repeated customer complaints.
- The contractor is responsible for initially validating customer complaints; however, the Government representative makes the final determination of validity in cases of disagreement.

4. ACCEPTABLE / UNACCEPTABLE PERFORMANCE

Acceptable Performance: The Government shall document positive performance. Any such report may become part of the supporting documentation for a future contractual action.

Unacceptable Performance:

- When unacceptable performance occurs, the COR/Station POC shall inform the contractor, normally in writing unless circumstances necessitate verbal communication. The COR/Station POC shall document the discussion and forward it to the CO for the contract file.
- Where formal written communication is warranted, the COR/Station POC shall prepare a Contract Discrepancy Report (CDR) and present it to the contractor's program manager. The contractor shall acknowledge receipt of the CDR in writing. The CDR will specify whether a corrective action plan is required and the timeframe for submission.
- The Government shall review the contractor's corrective action plan to determine acceptability. Any CDR may become part of the supporting documentation for any contractual action deemed necessary by the CO.

The contractor shall appoint a point of contact responsible for responding to customer needs under this contract, ensuring emergent needs are addressed within 24 hours and non-emergent needs are addressed within the normal delivery period specified in this PWS.

PWS APPENDIX A: ACRONYMS AND DEFINITIONS

A.1 ACRONYMS (EXPANSIONS)

Acronym	Definition
AQL	Acceptable Quality Level
CBOC	Community Based Outpatient Clinic
CDR	Contract Discrepancy Report
CFR	Code of Federal Regulations
CO	Contracting Officer
COR	Contracting Officer's Representative
CPARS	Contractor Performance Assessment Reporting System
CSCA	Contractor Security Control Assessment
DOL	Department of Labor
EMS	Environmental Management Service(s)
EPA	Environmental Protection Agency (U.S. EPA and/or Ohio EPA, as applicable)
FAR	Federal Acquisition Regulation
FCP	Fund Control Point
GEMS	Green Environmental Management System (VHA Directive 7707)
GFE	Government-Furnished Equipment
GFI	Government-Furnished Information
IDIQ	Indefinite-Delivery, Indefinite-Quantity
LSVAMC	Louis Stokes VA Medical Center
NX	Equipment Team designation within VANEOHS Logistics (VANEOHS NX Equipment Team)

OGC	Office of General Counsel
OPM	U.S. Office of Personnel Management
OSHA	Occupational Safety and Health Administration
PII	Personally Identifiable Information
POC	Point of Contact
PPE	Personal Protective Equipment
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
SOW	Statement of Work
VA	Department of Veterans Affairs
VAAR	VA Acquisition Regulation
VANEOHS	VA Northeast Ohio Healthcare System
VHA	Veterans Health Administration

A.2 DEFINED TERMS (FULL DEFINITIONS)

Term	Definition
Agent Cashier	The LSVAMC office responsible for receiving, recording, and depositing funds owed to the Government, including recycling proceeds under this contract (see Section 7.6).
Ordering Period 1	The initial period of performance under this contract, prior to any additional ordering periods (see Section 12).
Hospital Scrap	Non-hazardous materials and unserviceable equipment generated through daily hospital operations, maintenance, construction, and modernization activities, as further defined in Section 4.1.

Mixed Scrap	Scrap items containing 10% or less non-metal materials (e.g., rubber, non-asbestos insulation, cork, concrete), as defined in Section 4.1, which may be reported as a commingled category rather than itemized by individual subtype.
Ordering Period	A defined period of performance under this contract (5 Ordering Periods), replacing the traditional "option year" structure; see Section 12.
Ordering Authority	The limited set of parties (VANEOHS NX Equipment Team, Logistics Department, or the CO) authorized to initiate a pickup request under this contract; see Section 3.2.
Pickup	**One load collected and removed by the contractor under an authorized pickup request. Where servicing a single authorized request requires multiple truckloads/trips, each truckload/trip constitutes a separate billable pickup; see Section 4.3.**
Title Retention	The provision under which scrap materials remain the property of VANEOHS until the corresponding recycling proceeds payment has cleared, regardless of physical possession or transport by the contractor; see Section 7.7.

APPENDIX B — MILEAGE BAND REFERENCE CHART

Distances below are actual driving distances from the main facility (Louis Stokes VA Medical Center – Warehouse Dock, 10701 East Blvd, Cleveland, OH 44106), confirmed by the CO/COR using a mapping tool. Bands: **Within VAMC** (on main campus) • **1–25 miles** • **over 25 to under 50 miles** • **50+ miles**. Bands are for pricing/dispatch planning only and do not limit service obligations.

Within VAMC – On Campus Grounds		
Site	**County**	**Distance**
LXC (Learning Exchange Center)	Cuyahoga	0.1 mi
Fisher House	Cuyahoga	0.3 mi
Advanced Manufacturing (Cedar)	Cuyahoga	0.8 mi
Environmental Management Services (EMS)	Cuyahoga	Main Facility
Engineering Service	Cuyahoga	Main Facility
On Station Storage Warehouses	Cuyahoga	Main Facility
Wade Park Personal Health	Cuyahoga	Main Facility
On Station Housing – Logistics Service (DOM)	Cuyahoga	Main Facility
Estimated 1-25 Miles from Cleveland VA Medical Center Main Campus (10701 East Boulevard) address.		
Site	**County**	**Distance**
Outpatient Surgery Center – Surgical (W)	Cuyahoga	1.5 mi
EUL (Euclid Ave.)	Cuyahoga	2.7 mi
Offsite Warehouse Facilities (Warrensville Hts.)	Cuyahoga	6.5 mi
Park Center Plaza – Building 1 (6100 Oak Tree Blvd.)	Cuyahoga	9.4 mi
Park Center Plaza – Building 2 (6150 Oak Tree Blvd.)	Cuyahoga	9.4 mi
Parma CBOC	Cuyahoga	11.2 mi

Vet Center East (Oakwood Village)	Cuyahoga	11.5 mi
Lake County CBOC (Willoughby)	Lake	11.6 mi
Health Aide of Ohio	Cuyahoga	14.3 mi

Estimated (over 25 to under 50) Miles from Cleveland VA Medical Center Main Campus (10701 East Boulevard) address.

Site	County	Distance
Lorain CBOC (Sheffield Village)	Lorain	26.8 mi
Ravenna Outpatient Clinic (N. Chestnut St.)	Portage	30.8 mi
Ravenna (Loomis Ave.)	Portage	30.9 mi
Kent VA Clinic	Portage	31.0 mi
Akron CBOC – Annex	Summit	31.7 mi
Akron CBOC	Summit	31.8 mi
Ohio Western Reserve National Cemetery (Seville)	Medina	36.9 mi
Warren Outpatient Clinic	Trumbull	45.0 mi
Vet Center West (Canton)	Stark	49.3 mi

Estimated (50+) Miles from Cleveland VA Medical Center Main Campus (10701 East Boulevard) address.

Site	County	Distance
Canton CBOC	Stark	50.9 mi
Youngstown CBOC	Mahoning	55.5 mi
Sandusky CBOC	Erie	57.5 mi

Mansfield CBOC	Richland	70.4 mi
New Philadelphia CBOC	Tuscarawas	71.2 mi
East Liverpool CBOC (Calcutta)	Columbiana	78.9 mi

B.3 PRICE/COST SCHEDULE

- The guaranteed minimum only applies to the Federal Government Fiscal Year in which the contract is awarded. The guaranteed minimum of this contract is $20,000.00. The guaranteed amount shall be expended in the initial fiscal year in which this contract is awarded or funding is obligated. The maximum total value of the contract, inclusive of ordering periods, shall not exceed $1,750,000.00.

- Task order minimums and maximums are addressed in clause 52.216-19.

- Some items listed below are estimated quantities: CLINS/SLINS 0001, 0001AA, 0001AB, 0001AC, 0001AD and subsequent Ordering Period CLINS/SLINS.

- **Funding/ordering structure:** Individual Task Orders shall be funded annually. Only the Contracting Officer may place annual Task Orders against this contract, for the estimated number of services for the specific timeframe, issued to the contractor. Issuance of the annual Task Order establishes funding and authorizes performance for that period; it does not itself authorize any individual pickup, which remains governed separately by PWS Section 3.2 (NX Equipment Team, Logistics Department, or CO only).

- **Invoicing:** Contractor shall invoice **monthly**, for actual services rendered only, itemized by CLIN/SLIN, submitted via Tungsten Network. The contractor shall not perform services outside those identified in the awarded CLINs/SLINs unless the ACO issues a modification adding a CLIN for that specific action.

- **Pricing submission:** All pricing shall be submitted in the supplied Microsoft Excel file (**Price-Cost_Schedule-27Q0075 – V1.xls**) only. Pricing submitted elsewhere in the quote will result in exclusion from award.

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	ESTIMATED QUANTITY	UNIT	UNIT PRICE	ESTIMATED AMOUNT
0001	Northeast Ohio VA Healthcare System - Scrap Metal Recycling Contract Period: Ordering Period 1 POP Begin: 12-15-2026 POP End: 12-14-2027 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property	0.00	MO	_____	_____
0001AA	Scrap Metal Recycling - On Location on the Cleveland VA Medical Center Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 1 POP Begin: 12-15-2026 POP End: 12-14-2027 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property	156.00	EA	_____	_____
0001AB		35.00	EA	_____	_____

Scrap Metal Recycling - On Location between 1-25 miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 1
POP Begin: 12-15-2026
POP End: 12-14-2027
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

0001AC		35.00	EA	_____	_____

Scrap Metal Recycling - On Location between Over 25 to Under 50 miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 1
POP Begin: 12-15-2026
POP End: 12-14-2027
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

0001AD		14.00	EA	_____	_____

Scrap Metal Recycling - On Location between 50+ miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 1
POP Begin: 12-15-2026
POP End: 12-14-2027
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

1001		0.00	MO	_____	_____

Northeast Ohio VA Healthcare System - Scrap Metal Recycling
Contract Period: Ordering Period 2
POP Begin: 12-15-2027
POP End: 12-14-2028
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

1001AA		168.00	EA	_____	_____

Scrap Metal Recycling - On Location on the Cleveland VA Medical Center Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 2
POP Begin: 12-15-2027
POP End: 12-14-2028
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

1001AB		40.00	EA	_____	_____
	Scrap Metal Recycling - On Location between 1-25 miles from Main Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 2 POP Begin: 12-15-2027 POP End: 12-14-2028 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property				
1001AC		40.00	EA	_____	_____
	Scrap Metal Recycling - On Location between Over 25 to Under 50 miles from Main Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 2 POP Begin: 12-15-2027 POP End: 12-14-2028 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property				
1001AD		16.00	EA	_____	_____
	Scrap Metal Recycling - On Location between 50+ miles from Main Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 2 POP Begin: 12-15-2027 POP End: 12-14-2028 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property				
2001		0.00	MO	_____	_____
	Northeast Ohio VA Healthcare System - Scrap Metal Recycling Contract Period: Ordering Period 3 POP Begin: 12-15-2028 POP End: 12-14-2029 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property				
2001AA		180.00	EA	_____	_____
	Scrap Metal Recycling - On Location on the Cleveland VA Medical Center Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 3 POP Begin: 12-15-2028 POP End: 12-14-2029 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property				

2001AB		45.00	EA	_____	_____
Scrap Metal Recycling - On Location between 1-25 miles from Main Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 3 POP Begin: 12-15-2028 POP End: 12-14-2029 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property					
2001AC		45.00	EA	_____	_____
Scrap Metal Recycling - On Location between Over 25 to Under 50 miles from Main Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 3 POP Begin: 12-15-2028 POP End: 12-14-2029 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property					
2001AD		18.00	EA	_____	_____
Scrap Metal Recycling - On Location between 50+ miles from Main Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 3 POP Begin: 12-15-2028 POP End: 12-14-2029 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property					
3001		0.00	MO	_____	_____
Northeast Ohio VA Healthcare System - Scrap Metal Recycling Contract Period: Ordering Period 4 POP Begin: 12-15-2029 POP End: 12-14-2030 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property					
3001AA		192.00	EA	_____	_____
Scrap Metal Recycling - On Location on the Cleveland VA Medical Center Campus Priced Per Pickup Estimated Quantity, Not to Exceed, Bill for Actual Usage Contract Period: Ordering Period 4 POP Begin: 12-15-2029 POP End: 12-14-2030 PRINCIPAL NAICS CODE: 562119 - Other Waste Collection PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal					

of Excess/Surplus Property

3001AB		50.00	EA	_____	_____

Scrap Metal Recycling - On Location between 1-25 miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 4
POP Begin: 12-15-2029
POP End: 12-14-2030
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

3001AC		50.00	EA	_____	_____

Scrap Metal Recycling - On Location between Over 25 to Under 50 miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 4
POP Begin: 12-15-2029
POP End: 12-14-2030
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

3001AD		20.00	EA	_____	_____

Scrap Metal Recycling - On Location between 50+ miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 4
POP Begin: 12-15-2029
POP End: 12-14-2030
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

4001		0.00	MO	_____	_____

Northeast Ohio VA Healthcare System - Scrap Metal Recycling
Contract Period: Ordering Period 5
POP Begin: 12-15-2030
POP End: 12-14-2031
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

4001AA		204.00	EA	_____	_____

Scrap Metal Recycling - On Location on the Cleveland VA Medical Center Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 5
POP Begin: 12-15-2030
POP End: 12-14-2031
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection

PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

4001AB		55.00	EA	_____	_____

Scrap Metal Recycling - On Location between 1-25 miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 5
POP Begin: 12-15-2030
POP End: 12-14-2031
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

4001AC		55.00	EA	_____	_____

Scrap Metal Recycling - On Location between Over 25 to Under 50 miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 5
POP Begin: 12-15-2030
POP End: 12-14-2031
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

4001AD		22.00	EA	_____	_____

Scrap Metal Recycling - On Location between 50+ miles from Main Campus
Priced Per Pickup
Estimated Quantity, Not to Exceed, Bill for Actual Usage
Contract Period: Ordering Period 5
POP Begin: 12-15-2030
POP End: 12-14-2031
PRINCIPAL NAICS CODE: 562119 - Other Waste Collection
PRODUCT/SERVICE CODE: P100 - Salvage - Preparation and Disposal of Excess/Surplus Property

PLEASE ENTER PRICING INFORMATION INTO attached XLSM DOCUMENT: Price-Cost_Schedule – 27Q0075 – V1.XLS

The Excel document has a Totals tab which automatically computes the Base + all Period Years, i.e., Total Contract Value and Net Present Values.

The Sheet has an instructions tab and a "Vendor Notes" tab (for providing information regarding pricing if need-be per the instructions tab.

SECTION C - CONTRACT CLAUSES

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul
https://www.va.gov/oal/library/vaar/

(End of Clause)

FAR Number	Title	Date
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT 2018
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-14	LIMITATIONS ON SUBCONTRACTING (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (DEVIATION)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-41	SERVICE CONTRACT LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (DEVIATION)	NOV 2025
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025

52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION)	NOV 2025
52.222-62	PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION)	NOV 2025
52.223-5	POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION	MAY 2024
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (DEVIATION)	SEP 2025
52.229-12	TAX ON CERTAIN FOREIGN PROCUREMENTS	FEB 2021
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.233-3	PROTEST AFTER AWARD	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
52.237-3	CONTINUITY OF SERVICES	JAN 1991
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.211-76	LIQUIDATED DAMAGES - REIMBURSEMENT FOR DATA BREACH COSTS	FEB 2023
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.223-71	SAFETY AND HEALTH	SEP 2019
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER	OCT 2020

C.2 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 12/15/2026 through 12/14/2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor’s email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.3 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than $20,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of $50,000.00;

(2) Any order for a combination of items in excess of $50,000.00; or

(3) A series of orders from the same ordering office within 3 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 1 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.4 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 10/14/2031.

(End of Clause)

C.5 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days before expiration.

(End of Clause)

C.6 52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This statement is for information only and is not a wage determination. Monetary wages and fringe benefits contained in the table are for Cuyahoga County based on the current wage determination. It is the vendor's responsibility to reference the appropriate wage determination for the location where the work is to be performed and to pay each employee accordingly.

Employee Class	Monetary Wage-Fringe Benefits
General Laborer	$18.72 + $5.42
Truck Driver	$20.75 + $5.42

This is for Instruction Only. The Contractor is responsible for the correct title classification of workers and compliance with all DOL applicable wage and hour laws and assume all related risks. The VA is not responsible for wage determinations and classifications.

If you'll be using the occupational titles from the wage determinations for the classification of workers their WG/GS-equivalent rates can be found at this link:
https://www.dol.gov/whd/regs/compliance/wage/SCADirV5/Vers5ContentsTable.pdf

the WG/GS equivalent rates step-2 hourly rates can be found at this link: Benefits, Wage, NAF (osd.mil)
the GS equivalent rates step-1 hourly rates can be found at this link: General Schedule (opm.gov)

C.7 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (DEVIATION APR 2026)

(a)*Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g.*, vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of Clause)

C.8 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions*. As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at *https://www.sam.gov* (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided

by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any

proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at *https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists*.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at *https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information*.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at *https://www.trade.gov/consolidated-screening-list*, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at *https://www.sam.gov* to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f)*Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall

promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at *https://dibnet.dod.mil*.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report*.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.9 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION APR 2026)

(a) *Definitions*. As used in this clause—

Commercial product, commercial service and nondevelopmental item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract has the meaning at FAR 44.401

(b) *Requirements*.

(1) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(2) If a clause in the following table is included in the contract, the Contractor shall insert the clause in subcontracts for commercial products or commercial services and must flow down the requirements of the clause to subcontracts as indicated in the specific clause:

Number	Title	Date
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.219-8 *	Utilization of Small Business Concerns	JAN 2025
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020

52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2025
52.222-50 with Alt I	Combating Trafficking in Persons, with its Alternate I	MAR 2015
52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements	MAY 2014
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements	MAY 2014
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.222-90	Addressing DEI Discrimination by Federal Contractors	APR 2026
52.224-3	Privacy Training	JAN 2017
52.224-3 with Alt I	Privacy Training, with Alternate I	JAN 2017
52.225-26	Contractors Performing Private Security Functions Outside the United States	OCT 2016
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.240-91	Security Prohibitions and Exclusions	NOV 2025
52.240-91 with Alt I	Security Prohibitions and Exclusions, with its Alternate I	NOV 2025
52.240-92	Security Requirements	NOV 2025
52.240-92 with Alt II	Security Requirements, with its Alternate II	NOV 2025
52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels	NOV 2025

* Include only if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(c) *Subcontracts*. The Contractor shall include the terms of this clause, including this paragraph (c), in subcontracts awarded under this contract.

(End of Clause)

C.10 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least $100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: $500,000.00 per occurrences.

(c) Automobile liability: $200,000.00 per person; $500,000.00 per occurrence and $20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

(End of Addendum to 52.212-4)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1 APPENDIX A: ADDITIONAL REQUIRED SUBMISSION DOCUMENTS

See attached document: Price-Cost_Schedule - 27Q0075 - V1.
See attached document: PPQ - 27Q0075 - Vendor Name.

D.2 APPENDIX B: WAGE DETERMINATIONS

Service Contract Labor Standards are applicable to this contract. Please reference SAM.gov for all the locations below.

All applicable Wage Determinations can be found at www.SAM.gov.

Location(s)	County	WD Number	Revision No.	Published Date
Louis Stokes VA Medical Center (Main Facility); Parma CBOC; LXC; EUL; Park Center Plaza (Buildings 1 & 2); Outpatient Surgery Center; Vet Center East; On Station Housing (DOM); Health Aide of Ohio; Fisher House; Offsite Warehouse Facilities	Cuyahoga	2015-4727	31	8/22/2026
Lake County CBOC	Lake	2015-4727	31	8/22/2026
Lorain CBOC	Lorain	2015-4727	31	8/22/2026
Ohio Western Reserve National Cemetery	Medina	2015-4727	31	8/22/2026
Kent VA Clinic; Ravenna Outpatient Clinic (N. Chestnut St.); Ravenna (Loomis Ave.)	Portage	2015-4721	30	8/22/2026
Akron CBOC; Akron CBOC – Annex	Summit	2015-4721	30	8/22/2026
Youngstown CBOC	Mahoning	2015-4263	34	8/22/2026
Warren Outpatient Clinic	Trumbull	2015-4263	34	8/22/2026
Canton CBOC; Vet Center West	Stark	2015-4723	34	8/22/2026
East Liverpool CBOC	Columbiana	2015-4759	34	8/17/2026
Mansfield CBOC	Richland	2015-4735	31	8/22/2026
Sandusky CBOC	Erie	2015-5941	6	8/17/2026

New Philadelphia CBOC	Tuscarawas	2015-4763	34	8/22/2026

VIRTUAL REQUIREMENTS:

Any requirements that are performed remotely (Web, Telephonic) shall utilize Wage Determinations based upon where the vendor’s employee is performing the work.

D.3 APPENDIX C: VENDOR ACKNOWLEDGMENT AND CONCURRENCE TABLE

Please complete the following table to indicate your acknowledgment and concurrence with the solicitation terms, conditions, and amendments:

Document	Date	Concurrence (Yes/No)	Authorized Signature	Date Signed
Original Solicitation				
Amendment * _				
All Terms and Conditions				

** This table reflects the solicitation and amendments issued as of the date shown on the solicitation. The vendor is responsible for monitoring SAM.gov (Contract Opportunities) and for adding a row to this table for every amendment issued, including any amendment released after its quote is submitted. Each row must show the amendment number and issue date and be marked with the vendor's concurrence (Yes/No). If an amendment is issued after submission, the vendor shall submit an updated, signed copy of this table before the award decision.*

By signing the above, the vendor acknowledges receipt of the solicitation and all amendments, and concurs with all terms, conditions, and changes specified therein. Any exceptions or deviations must be clearly stated in the quote.

Note: Failure to acknowledge and concur with all amendments will result in the quote being excluded from award consideration.

Solicitation No: 36C25027Q0075

Company Name: _____

SAM UEI: _____

Point of Contact: _____

Signature: _____ Date: _____

D.4 APPENDIX D: LIMITATIONS ON SUBCONTRACTING AND COMPLIANCE WORKSHEET

Part 1: Instructions

Quoters shall complete this Worksheet and submit it in full, as issued by the Government, in original format, with all pages included. Excerpted pages, cropped images, screenshots, or reformatted/retyped versions will be treated as incomplete and non-conforming. All information must be factual, accurate, and supported with sufficient detail for the Government to evaluate your proposed approach. Failure to submit this attachment by the deadline, failure to submit it in its original, unmodified format, or failure to provide sufficient detail for the Government to review your work plan, may result in your quote being considered incomplete and ineligible for award.

This attachment allows the Government to review:
• Who will perform the work
• How much work the prime contractor will perform
• How much work will be subcontracted
• Whether any subcontractor is "similarly situated," if applicable
If a question does not apply, write "N/A."

---

1. Offeror Information

Company Name	
SAM UEI	
CAGE Code	
Solicitation Number	36C25027Q0075
Solicitation Set Aside	☐SDVOSB ☐VOSB ☐EDWOSB ☐WOSB ☐HUBZone ☐8(a) ☐SDB ☒Small Business
NAICS Code	562119

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2. Who Will Do the Work?

Provide a brief summary of how you plan to perform the work.

[Provide Answer to #2 here, please add space as necessary]

---

3. Subcontractor Information by Period of Performance

Complete one row for each ordering period. Copy/paste this table as many times as needed for multiple Subcontractors. This information may be edited, changed, or modified as Prime-Sub Relationships change. Any changes shall be submitted to the Contracting Officer within 15 days of any change of relationship.

Period Of Performance	Subcontractor Name	Subcontractor SAM UEI	Small Business Status	Is Sub Similarly Situated?	Work To Be Performed	CLINs/Task Area Supported	Estimated Value for This Period
-Example-	Success Enterprises	7A4839275612	SDVOSB, HUB	Yes	Disposal of waste	0001AB, 0002AB	$3,500.00
Ordering Period 1							

Ordering Period 2							
Ordering Period 3							
Ordering Period 4							
Ordering Period 5							

Please include any additional notes here.

---

4. Total Subcontracting Estimate

Period of Performance	Total Estimated Subcontracted Value ($)
Ordering Period 1	
Ordering Period 2	
Ordering Period 3	
Ordering Period 4	
Ordering Period 5	
Total Value (Full Contract Term)	

Explanation of how amounts were calculated:

_____

_____

_____

_____

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5. Compliance Plan (Detailed Narrative Required)

Offerors must provide a detailed and specific compliance plan. General statements such as "*we will ensure we do not pay more than 50% to our subcontractor*" are not sufficient and will not be accepted.

Your compliance plan must clearly describe:

• **What work the prime will perform** and how it provides **real value** to the Government.

• **How the prime will monitor and control subcontractor participation**, including the methods, tools, or checkpoints used.

• **How the prime will ensure subcontracting remains within required limits**, including internal oversight and verification steps.

• **How the prime will confirm and maintain subcontractor eligibility**, including socioeconomic status and any similarly situated determinations.

• **How the prime will document compliance**, including what records will be kept and what can be provided to the Government upon request.

To be acceptable, the plan must show:

• The prime contractor will perform **meaningful, substantive work**, not just administrative tasks.

• The prime contractor will **not function as a pass-through** and will retain responsibility for critical aspects of performance.

• Compliance will be maintained using **consistent, enforceable procedures** throughout the entire period of performance.

[Blank space for offeror's detailed plan, please add to this space as necessary]

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6. Certification (Offerors must include Part 1 including Certification as a printed & signed PDF with submission).

By signing below, the offeror certifies that the information in this attachment is true and complete to the best of their knowledge.

• Name: _____

• Title: _____

• Signature: _____

• Date: _____

Part 2: What This Means - Purpose of This Attachment
This document helps the Government understand your performance approach, including how much of the work the prime will perform, how much will be subcontracted, and whether the proposed structure meets the requirements of the set-aside program and applicable subcontracting limitations.

This attachment supports the Government's evaluation but does not replace any required contract clause or certification.

Addendum: Understanding Limitations on Subcontracting
1. VAAR 852.219-75 (VA SDVOSB/VOSB Set-Asides)
For VA SDVOSB and VOSB set-aside contracts, the prime must perform a required portion of the work. Percentage limits depend on the NAICS code. Work performed by a similarly situated SDVOSB or VOSB does not count against the prime's subcontracting cap. Material costs do not count as subcontracting.

VA may measure compliance at the end of each ordering period.

2. FAR 52.219-14 (All SBA Small-Business Set-Asides)
This clause defines "similarly situated entities" and establishes how subcontracting limits apply. A subcontractor is similarly situated only if it shares the prime's SBA program status and is small under the assigned NAICS.
Examples of SBA Socioeconomic Categories
1. Service-Disabled Veteran-Owned Small Business (SDVOSB)
2. Veteran-Owned Small Business (VOSB)
3. 8(a) Business Development Program
4. HUBZone Small Business
5. Woman-Owned Small Business (WOSB) / Economically Disadvantaged WOSB (EDWOSB)
6. Small Disadvantaged Business
7. Small Business (SB)

Similarly Situated Examples
• Prime (Small Business) → Subcontractor (Small Business, same NAICS)
• Prime (SDVOSB) → Subcontractor (SDVOSB)

Not Similarly Situated
• Subcontractor is a large business i.e., WOSB subcontracting to large business if solicitation is WOSB set-aside unless they do pay less than 50% of the cost of the contract to that subcontractor.
• Subcontractor is under a different NAICS
• Second-tier subcontractors

3. This Is Not a "Percentage of the Job" Requirement

Limitations on subcontracting are based on **dollar value**, not hours, tasks, or workload share.
The prime must ensure payment to non-similarly situated subcontractors stays within the required percentage, regardless of how many tasks those subcontractors perform.

4. How VA Measures Compliance
Compliance may be validated at:

• The end of each ordering period

The Government may request documentation at any time. Additionally, the Government may require the contractor to submit documentation within 30 days of the start of a new ordering period, and such documentation will cover the immediately preceding period of performance. If this method is required, it shall be documented in the QASP (Quality Assurance Surveillance Plan) within the Performance Work Statement.

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5. Prime Contractor Work Must Provide Actual Value

The prime contractor must perform substantive work that contributes directly to meeting contract requirements and Government objectives.

• Prime contractor work must provide **actual value** to the Government.
• Work cannot be nominal, minimal, or limited to administrative oversight.
• The prime must not act as a pass-through.
• Real, meaningful contributions must be evident, measurable, and consistent throughout performance.

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6. SBA Certification Requirements Table

Set-Aside Program	Requires SBA Certification?	Notes
Service-Disabled Veteran-Owned Small Business (SDVOSB)	Yes	Must be SBA-certified.
Veteran-Owned Small Business (VOSB)	Yes	Required for VA Veterans First.
8(a) Business Development Program	Yes	SBA certification required.
HUBZone Small Business	Yes	Must be HUBZone-certified.
Women-Owned Small Business (WOSB) / EDWOSB	Yes	Must be SBA-certified or certified through an approved third party.
Small Business (SB)	No	Must meet size standard; self-identify in SAM.

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7. Small Business Size Standards and SAM.gov Validation

SAM.gov displays whether a proposed subcontractor qualifies as a **small business** under a specific NAICS code based on **SBA size standards**, which are determined by either revenue or employee count depending on the industry. The Government will conduct its own due diligence to verify a subcontractor's size status and confirm any required SBA certifications.

Offerors are responsible for ensuring that each proposed subcontractor qualifies as a small business **for the specific NAICS code assigned to their subcontracted work**. A company may be a small business under one NAICS code but **not** a small business under another, depending on the applicable size thresholds.

It is the offeror's responsibility to review size standards and confirm subcontractor eligibility **before** submitting a quote. Relying on informal statements such as "they only have 15 employees" or other undocumented assurances does **not** constitute valid proof of small business status. Prime contractors must verify size status through authoritative means such as SAM.gov, SBA size standards tables, and official business registration information.

Offerors must ensure their subcontractor eligibility determinations are **accurate, supportable, and documented** at the time of submission.

D.5 APPENDIX E – LIMITATIONS ON SUBCONTRACTING (LOS) REPORTING INSTRUCTIONS

1. Purpose of the Report

This report is used to validate the contractor's compliance with the Limitations on Subcontracting requirements under FAR 52.219-14 and 15 U.S.C. § 657s. The VA uses this information to ensure that the contractor continues to meet statutory self-performance requirements during each period of performance.

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2. Reporting Period

The LOS Compliance Report must cover the immediately preceding period of performance. The report must be submitted within **30 calendar days after the start of each ordering period**, or upon request by the Contracting Officer.

---

3. Required Report Content

Contractors must report **labor cost data only**. Do **not** include materials, supplies, travel, equipment, chemicals, or overhead costs.

Required fields:

- Total Contract Labor Cost (Prime + Subcontractors): _____
- Prime Contractor Labor Cost: _____
- Prime Labor Percentage: _____
- Description of Work Self-Performed: _____
- Subcontractor Labor Cost: _____
- Subcontractor Percentage: _____

(Please copy and paste the four items below to identify all subcontractors.)

- Subcontractor Name: _____
- Subcontractor Business Size (Small/Large): _____
- Subcontractor Socioeconomic Category: _____
- Tasks Performed by Subcontractor(s): _____

Additional required LOS elements:

- Combined Subcontractor Percentage: _____
- LOS Threshold for Contract Type: _____
- Compliance Determination (Yes/No): _____
- Explanation of Deviations (If Any): _____
- Corrective Actions Taken: _____
- Expected Date to Return to Compliance: _____
- Cumulative Prime Labor Percentage: _____
- Cumulative Subcontractor Percentage: _____
- Notes: _____

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4. How VA Measures Compliance

VA evaluates LOS compliance based on prime labor versus total labor, subcontractor labor percentages, and consistency with the contractor’s LOS Worksheet submitted at award. Substantial deviations may result in corrective action, withholding of payment, cure notices, or other remedies determined appropriate by the Contracting Officer.

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5. Certification

The contractor must certify the accuracy and completeness of the LOS Compliance Report by completing the following fields:

- Authorized Official Name: _____
- Title: _____
- Email: _____
- Phone: _____
- Signature: _____
- Date: _____

D.6 APPENDIX F – INSTRUCTIONS FOR IDENTIFYING AND REPORTING SUBCONTRACTORS

This appendix provides clear instructions to assist contractors in correctly identifying all subcontractors used during the period of performance. These instructions support compliance with FAR 52.219-14 and 15 U.S.C. § 657s (Limitations on Subcontracting) and must be followed when preparing the Limitations on Subcontracting (LOS) Compliance Report required under Appendix D and Appendix E.

1. Purpose
Contractors must identify all subcontractors contributing labor toward contract performance. Accurate identification ensures proper calculation of subcontracted labor percentages and allows the Government to validate compliance with statutory self-performance requirements.

2. When to Provide Subcontractor Information
Subcontractor information must be provided:

- Within **30 calendar days** after the start of each ordering period (as part of the LOS Compliance Report), and
- Any time upon request by the Contracting Officer.

3. Required Identification Items
For each subcontractor used during the reporting period, contractors must provide **all four items** listed below. These items must be copied and completed exactly as shown when identifying a subcontractor.
(Please copy and paste the four items below to identify each subcontractor):

1. **Subcontractor Name:**

---

2. **UEI:**

---

3. **Business Size (Small/Large):**

---

4. **Socioeconomic Category (if applicable):**
   SDVOSB / VOSB / WOSB / HUBZone / 8(a) / Other Small Business / None

---

Contractors must submit these four items for **every** subcontractor contributing labor, regardless of dollar amount or frequency of use.

4. Additional Required Details
In addition to the four identification items, the contractor must also provide:

- A description of subcontractor tasks or PWS sections performed
- The subcontractor's labor cost for the reporting period
- The subcontractor's percentage of total labor cost
- Any notes or context relevant to subcontractor use

These details help determine how subcontracted labor contributes to overall performance.

5. Accuracy Requirements
Contractors must ensure:

- All subcontractors are reported (even brief or one-time use)
- All fields are completed honestly and fully

- Business size and socioeconomic designations align with SAM.gov records
- Tasks listed match the PWS sections actually completed
- Labor cost reporting is accurate and based on **labor only**
- No materials, supplies, travel costs, or non-labor amounts are included

Incomplete or inaccurate subcontractor identification may result in:

- Correction requests
- Cure notice issuance
- Payment withholding
- Other actions deemed appropriate by the Contracting Officer

6. Certification Requirement

The subcontractor information provided under Appendix F must correspond to the LOS Certification Statement in Appendix E. The Government may request revised or additional information if discrepancies arise.

SECTION E - SOLICITATION PROVISIONS

E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

E.2 QUOTE PREPARATION INSTRUCTIONS

To ensure timely and equitable evaluation of quotes, offerors must follow the instructions contained herein for quote submissions. Quotes must be complete, self-sufficient, and respond directly to the requirements of this solicitation.

FAILURE TO PROVIDE ANY OF THE INFORMATION REQUESTED IN THIS SECTION MAY RESULT IN YOUR QUOTE BEING EXCLUDED FROM FURTHER CONSIDERATION FOR AWARD.

All quoters shall submit the following as separate documents:

- One PDF or Word-compatible file for each (Administrative, Technical).
- One Completed Price-Cost Schedule excel formatted file for Pricing.
- The offeror has the option to either combine past performance references into one PDF or send three individual Past Performance Questionnaires (PPQ) files at their discretion.

The files shall be named utilizing the following convention:
Vendor Firm Name – “Administrative” – 27Q0075

(The vendor will replace “Administrative” with Technical, Price, and Past Performance to match the document type they are submitting.)

If the vendor's name exceeds 15 characters, please utilize best practices for shortening the name so that it is clear and consistent across all submission documents.

Email instructions for submission:

- Subject Lines shall be labeled – “Vendor Firm Name | Quote Response | 27Q0075 | 1 of X “
- *VA has a maximum allowable incoming email size limitation including attachments of thirty (30) megabytes. Offerors submitting responses via email which exceed thirty megabytes shall split their response into multiple email messages to not exceed the maximum allowable email size limitation.
- If more than 1 email is submitted, please indicate 1 of X in the subject line
- *The VA is not responsible for late responses due to undelivered e-mails that exceed thirty megabytes, or responses that are delayed due to scanning attachments for threats.

- **ADMINISTRATIVE ITEMS – Consolidated into 1 Volume:**

    - Cover Page with business name, SAM UEI, Business Address, Point of Contact with Phone, and email information.

    - Vendors must provide a statement concurring with all solicitation Terms and Conditions and must individually acknowledge and concur with every amendment issued. Vendors are responsible for monitoring SAM.gov and ensuring all amendments are reviewed and agreed to, including those released after initial package submission. A template is provided in Appendix C. Failure to individually concur with all solicitation amendments and failure to submit this certification will result in the quote being excluded from award consideration.

    - Limitations on Subcontracting Compliance Worksheet (Appendix D): Quoters shall complete, sign, and date Part 1 of Appendix D and submit it **in full, as issued by the Government** — all pages, in original format. Excerpted pages, cropped images, screenshots, or reformatted/retyped versions will be treated as incomplete. All information must be factual, accurate, and supported with appropriate detail. Incomplete, unsupported, unsubstantiated, or non-conforming submissions (including partial or modified versions of the worksheet) may result in exclusion from award consideration.

- Vendors must provide a list of all points of contact who will support this requirement, including each individual's full name, email address, phone number, and role (e.g., Billing, Sales, Transportation).

- General liability insurance: The prime contractor and any subcontractor(s) supporting this requirement shall maintain general liability insurance coverage meeting or exceeding the limits specified in the Supplemental Insurance Requirements clause. Offerors shall submit a **current Certificate of Insurance (COI)** for themselves and for any subcontractor(s) used for this requirement as part of their quote package. **Future-dated certificates (i.e., certificates with an effective date later than the submission deadline) or written affirmations/statements asserting that the offeror carries the same or better coverage than required are not sufficient** and may result in the quote being excluded from award consideration. All insurance documentation must be current at the time of submission and remain current through contract award.

- The following clauses must be filled in, checked, and submitted in their entirety with your response in order to be considered for award:
  - FAR 52.209-7 Information Regarding Responsibility Matters Box (2)(b)
  - FAR 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation – Box (d)(1) and Box (d)(2)

- **PRICING ITEMS – Submitted as I Excel formatted file:**

  - Offerors shall submit pricing using the Government-supplied Price/Cost Schedule (Price-Cost_Schedule-27Q0075 – V1.xls), completed and returned **in native Microsoft Excel format** (.xlsx or .xlsm, as issued). Pricing shall not be submitted in any other format or location, including PDF, Google Sheets/Docs, Apple Numbers, scanned images, or embedded within another document. Pricing submitted anywhere else in the offeror's submission, or in any format other than the native Excel file as issued, will result in the quote being excluded from award consideration

- **TECHNICAL ITEMS – Consolidated into one Volume:**

  - **Technical Approach:** A detailed description of the proposed methodology for meeting all scrap metal service requirements, including Pickup, loading, transportation, and disposal.

  - **Communication and ordering Plan:** Explain your ordering procedures including methods of communication, designated points of contact (including after-hours procedures) and internal dispatch procedures when an order is requested.

  - **Quality Control Plan:** A plan detailing inspection procedures, tracking methods, deficiency identification/correction processes, communication with the Government, and methods ensuring compliance with PWS.

  - **Reporting and Tracking**: Please describe your reporting and tracking procedures including remittance of payments to the Agent Cashier. How are you going to ensure the 14-day remittance deadline and other reporting deliverables deadlines as indicated in the PWS.

- **PAST PERFORMANCE:** (Please submit either)
  - Offerors may submit exactly three (3) Past Performance Questionnaires (PPQs) for work performed within the past four years that is similar in size and scope to this requirement. A PPQ form is included with this solicitation. Previously completed PPQs from other federal solicitations may be used in place of new ones, provided they reflect similar size or scope work (including comparable NAICS codes) and are signed and dated by the rating official within the past twelve months.

OR

- Provide exactly three (3) client references for other similarly sized and relevant contracts or requirements that you have met in the past 4 years. Please be sure to include the following information.
  - Entity or organization name
  - Dates of Service
  - Description and short narrative of services rendered
  - POC and contact information (Name, Phone Number, Extension, and email address)
  - Approximate dollar value of contract/requirement
  - Contract number if a Federal Contract

- Past performance submitted shall be that of the prime offeror (the entity submitting the quote) only. Past performance of subcontractors, parent companies, affiliates, or predecessor entities will not be considered in the evaluation, regardless of whether the subcontractor is proposed to perform work under this contract. References and PPQs that describe work performed by an entity other than the offeror will not be evaluated. An offeror with no past performance of similar size and scope, or with none that can be verified, will receive a Neutral rating (see Section E.13), which will be neither favorable nor unfavorable.

All quotes shall be sent to Josh Kovar Joshua.Kovar@VA.gov via email

QUESTION-AND-ANSWER PERIOD (Q&A PERIOD), the Government will respond to questions submitted by offerors.

- The Q&A will start immediately upon solicitation posting to Contract Opportunities.
- All questions SHALL be submitted no later than 11/13/2026 by 13:30 (1:30 PM EST) via email to Joshua.Kovar@VA.gov.
- Any questions received after this deadline may not be answered. Answers to questions will be provided in the form of a solicitation amendment publicized on Contract Opportunities.
- Answers may change solicitation terms only via amendment.
- **In order to provide information equally to all interested parties, phone queries will not be entertained.**

The Government will conduct a comparative evaluation of quotations in accordance with **FAR § 12.203**, which allows quotations to be compared directly against one another to determine which provides the best overall value to the Government. Comparative evaluation is a side-by-side assessment of quotations based on the stated evaluation factors. Options will be evaluated at the time of award.

E.3 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://www.acquisition.gov/far-overhaul
https://www.va.gov/oal/library/vaar/

(End of Provision)

FAR Number	Title	Date
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.273-70	LATE OFFERS	NOV 2021

E.4 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via *https://www.sam.gov* (see 52.204-7).

(End of Provision)

E.5 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of an Indefinite Delivery Indefinite Quantity (IDIQ) contract resulting from this solicitation.

E.6 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (NOV 2025) (DEVIATION) ALTERNATE II (NOV 2025)

(a) *Definitions*. As used in this provision—

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS Code	Size Standard

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations*.

(1) The Offeror shall represent its small business size status for each one of the NAICS codes assigned to this acquisition under which it is submitting an offer.

NAICS Code	Small Business Concern (yes/no)

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents that it [ ] is, [ ] is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program*. [*Complete only if the offeror is certified as a SDVOSB concern*]. The offeror represents as part of its offer that it [ ] is, [ ] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(6) *HUBZone joint venture eligible under the HUBZone Program*. [*Complete only if the offeror is a HUBZone small business concern*.] The offeror represents, as part of its offer, that it [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice*.

Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of Provision)

E.7 52.233-2 SERVICE OF PROTEST (SEP 2006) (DEVIATION NOV 2025)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

E.8 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders*.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at *https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx*)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at *CISADA106@state.gov*.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

E.9 52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions*. As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—

(1) It [ ] is [ ] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption [*Offeror shall select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to *https://www.irs.gov/help/tax-law-questions*.

(End of Provision)

E.10 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: *EDProtests@va.gov.*

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

PLEASE NOTE: The correct mailing information for filing alternate protests is as follows:

Deputy Assistant Secretary for Acquisition and Logistics,
Risk Management Team, Department of Veterans Affairs
810 Vermont Avenue, N.W.
Washington, DC 20420

Or for solicitations issued by the Office of Construction and Facilities Management:

Director, Office of Construction and Facilities Management
811 Vermont Avenue, N.W.
Washington, DC 20420

E.11 VAAR 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008)

The following provisions or clauses incorporated by reference in this solicitation must be completed by the offeror or prospective contractor and submitted with the quotation or offer. Copies of these provisions or clauses are available on the Internet at the Web sites provided in the provision at FAR 52.252-1, Solicitation Provisions Incorporated by Reference, or the clause at FAR 52.252-2, Clauses Incorporated by Reference. Copies may also be obtained from the contracting officer.

- The following clauses must be filled in, checked, and submitted in their entirety with your response in order to be considered for award:
  - FAR 52.209-7 Information Regarding Responsibility Matters Box (2)(b)
  - FAR 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation – Box (d)(1) and Box (d)(2)

(End of Provision)

(End of Addendum to 52.212-1)

E.12 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Comparative Evaluation: Administrative
Technical
Price
Past Performance

(b) *Options (if applicable).* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.13 EVALUATION APPROACH

The Government will evaluate quotations using the comparative evaluation process permitted under FAR § 12.203. Under this approach, quotations are compared to determine which provides the best benefit to the Government. Comparative evaluation is a side-by-side assessment of quotations based on the stated evaluation factors. The Government may consider a quotation that is not the lowest priced if it offers additional benefit(s) based on the stated evaluation factors. Quotations may exceed the minimum requirements of the solicitation; however, each quotation must meet all minimum requirements. Alternate quotations are not requested or accepted. Ordering Periods will be evaluated at the time of award.

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1. Administrative Items
Administrative items will be evaluated on a **Satisfactory / Unsatisfactory** basis. Quotations must include all administrative items listed in the Quote Preparation Instructions, including:

- Concurrence with solicitation Terms and Conditions
- Individual concurrence with all solicitation amendments
- Completed FAR 52.209-7 and FAR 52.229-11 clauses
- Completed, signed, and dated Limitations on Subcontracting Worksheet in the format issued by the government
- Cover page
- Vendor points of contact
- Current liability insurance meeting or exceeding PWS requirements for the prime contractor and any subcontractors (if applicable)
- Any other administrative documents required in the solicitation

Evaluation Outcome:

- **Satisfactory:** Vendor provides all required administrative items.
- **Unsatisfactory:** Vendor fails to provide any required administrative item; the quote may be excluded from further consideration. Failure to provide the individual amendment concurrence in Appendix C will result in the quote being excluded from award consideration.

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2. Technical or Quality
The technical evaluation will assess the extent to which the quotation meets or exceeds the Government's requirements in accordance with the PWS and the Quote Preparation Instructions.

Subfactor 1 — Technical Approach The Government will evaluate the offeror's proposed methodology for performing pickup, loading, transportation, and disposal services for its demonstrated understanding of, and ability to meet, the requirements of the PWS.

Subfactor 2 — Communication and Ordering Plan The Government will evaluate the offeror's ordering procedures, including methods of communication, designated points of contact (including after-hours procedures), and internal dispatch procedures, for their ability to reliably support timely response to pickup requests.

Subfactor 3 — Quality Control Plan The Government will evaluate the offeror's QC plan for the adequacy of its inspection procedures, tracking methods, deficiency identification/correction process, communication with the Government, and overall ability to ensure compliance with the PWS.

Subfactor 4 — Reporting and Tracking The Government will evaluate the offeror's reporting and tracking procedures, including its process for remitting recycling proceeds to the Agent Cashier, for their ability to reliably meet the 14-day remittance deadline and all other reporting deadlines identified in the PWS.

Evaluation Outcome: Each subfactor will be rated as follows:

- **Exceeds:** The quotation demonstrates an approach that surpasses PWS requirements in a manner that provides added value or reduced risk to the Government (e.g., faster response commitments, redundant communication channels, proactive deficiency prevention, or a highly auditable proceeds-tracking system).
- **Meets:** The quotation demonstrates an approach that satisfies PWS requirements with an acceptable level of detail, feasibility, and risk.
- **Does Not Meet:** The quotation fails to demonstrate an approach that satisfies PWS requirements, or lacks sufficient detail, feasibility, or support to determine that the requirement will be met.

A rating of **Does Not Meet** on any subfactor renders the quotation ineligible for further consideration, regardless of the ratings received on the remaining subfactors. A quotation must receive a rating of Meets or Exceeds on all four subfactors to remain eligible for award.

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3. Price Evaluation

Offerors shall provide a detailed price proposal outlining costs associated with the provision of the services described.

Price Evaluation Process: The Government will evaluate price as follows:

Initial Review: All quotes will be reviewed for compliance with the specified evaluation criteria and calculation methodology. All quotes will be evaluated as a total cost consisting of all ordering periods identified in the Price/Cost Schedule.

- **Total Contract Value (TCV):** The Government shall evaluate the total price for the basic requirement by summing all CLINs/SLINs across all ordering periods listed in the Price/Cost Schedule. TCV is the primary basis for the comparative evaluation of price among quotations.
- **Net Present Value (NPV):** The Government will calculate the Net Present Value of each quote by applying a 6% discount rate to all ordering period pricing. NPV serves as a secondary method for determining the best overall long-term value to the Government, with the lowest NPV representing the most favorable long-term value, used to inform the comparative evaluation of price alongside TCV.

Unbalanced Pricing Review: The Government may determine that a quote is unacceptable if pricing across ordering periods is significantly unbalanced, including any/all of the following:

- **Excessively Front-Loaded or Back-Loaded Quotes:** Higher prices for initial ordering periods or items and significantly lower prices for later ordering periods or items, or vice versa. *Example: a quote with a very high price for ordering period 1 followed by substantially lower prices for each subsequent ordering period.*
- **Disproportionate Pricing of CLINs:** Prices for some CLINs are disproportionately high or low compared to the overall scope of work or similar items. *Example: per-unit costs for certain CLINs are much higher than industry standards without clear justification. Any pricing of disproportionate CLINS must be justified in the “Vendor Notes” tab of the supplied excel document.*

Evaluation Outcome: Quotations will be comparatively evaluated based on TCV, with NPV applied as a secondary check to confirm long-term value consistency. NPV will not override a materially superior technical merit rating; rather, it will inform the Government's best value determination alongside non-price factors. A

quotation found to contain significantly unbalanced pricing, as described above, may be determined unacceptable and excluded from award consideration.

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4. Past Performance

Offerors shall submit either three (3) Past Performance Questionnaires (PPQs) or three (3) client references, as described in the Quote Preparation Instructions. Only the past performance of the prime offeror (the entity submitting the quote) will be evaluated. Past performance of proposed subcontractors, parent companies, affiliates, or predecessor entities will not be considered.

Past Performance Evaluation Process: The Government will evaluate past performance through review of CPARS ratings within the last four (4) years, and through discussions with the named points of contact identified in the PPQs or client references submitted. The Contracting Officer will evaluate CPARS past performance featuring PSC: P100 engagements or equivalent within the last four (4) years relevant to this requirement. The Contracting Officer may also utilize other sources of information, including Government databases, public databases, publications, and any other method for obtaining information regarding an offeror's past performance.

Evaluation Outcome: Past performance will be assessed as follows:

- **Meets:** The offeror's past performance record demonstrates satisfactory performance on relevant contracts of similar size and scope to this requirement.
- **Does Not Meet:** The offeror's past performance record demonstrates unsatisfactory performance, or reflects significant performance deficiencies, on relevant contracts of similar size and scope to this requirement.
- **Neutral:** Assigned to offerors that have no past performance history of similar size and scope to this requirement. A Neutral rating will not be evaluated favorably or unfavorably, and the offeror remains eligible for award.

E.14 BASIS FOR AWARD

The Government intends to award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, considering technical capability, past performance, administrative compliance, and price. The Government reserves the right to award to other than the lowest-priced offer if the technical merit or past performance of the higher-priced offer justifies the additional cost.

The award will be made to the response most advantageous to the Government.
Responses should contain your best terms, conditions.

To facilitate the award process, all quotes must include a statement regarding the terms and conditions herein as follows:

> "The terms and conditions in the solicitation are acceptable to be included in the award document without modification, deletion, or addition."
>
> OR
>
> "The terms and conditions in the solicitation are acceptable to be included in the award document with the exception, deletion, or addition of the following:"

Quoters shall list exceptions(s) and rationale for the exception(s), if any.

Submission of your response shall be received not later than 1:30 PM EST on 11/23/2026 at Joshua.kovar@VA.gov.

Only emailed quotes shall be accepted. The quoter shall ensure that the quote is received by the designated contracting person prior to the closing date and time. All quotes, to be considered “on time,” shall be received by the closing date and time of the solicitation. It is the responsibility of the quoter to ensure it was delivered to the Contracting point of contact prior to the closing date and time of the solicitation. For Example: Quoter hits send at 1:59pm and Contracting’s emailed time stamp of received is 2:01pm when the closing time states 2:00pm, will be considered late.

*VA has a maximum allowable incoming email size limitation including attachments of thirty (30) megabytes. Offerors submitting responses via email which exceed thirty megabytes shall split their response into multiple email messages to not exceed the maximum allowable email size limitation.

*The VA is not responsible for late responses due to undelivered e-mails that exceed thirty megabytes, or responses that are delayed due to scanning attachments for threats.

Failure to submit the necessary information may render the Quote unacceptable, in which case it will not be considered for award.

Late submissions shall be treated in accordance with the solicitation provision at FAR 52.212-1(f).

Any questions or concerns regarding this solicitation should be forwarded in writing via e-mail to the Point of Contact listed below.

Point of Contact:
Josh Kovar
Contracting Officer
Joshua.Kovar@VA.gov

36C25027Q0075

This is a solicitation for commercial items prepared in accordance with the format in Federal Acquisition Regulation (FAR/RFO) subpart 12.6, “Streamlined Procedures for Evaluation and Solicitation for Commercial Items,” as supplemented with additional information included in this notice. This solicitation is issued as an RFQ. The solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2026-01.

- This solicitation is set aside for Small Businesses

The associated North American Industrial Classification System (NAICS) code for this procurement is 562119 – Other Waste Collection, with a small business size standard of $47.0 Million. The FSC/PSC is P100 – Salvage- Preparation and Disposal of Excess/Surplus Property

Northeast Ohio VA Healthcare System is requesting Facility Scrap and Recycling Services.

- All vendors shall provide all requested information in Quote Preparation Instructions section.

- There is a question-and-answer period for this requirement, ending at 1:30 PM EST on 11/13/2026

All interested companies shall provide quotations for the following: